

BYLAWS

Of the Everclear Grants BORG

These Bylaws constitute the official bylaws of the **Everclear Grants BORG**, a not-for-profit unincorporated association (the “**BORG**”).

These Bylaws are a legal agreement and contract binding on the Grants Multisig Members, enforceable in accordance with their terms. Each Grants Multisig Member shall execute and deliver to the BORG a BORG Participation Agreement.

Certain capitalized terms used in these Bylaws are defined on Exhibit A.

1 BORG OVERVIEW

1.1 General Nature of the BORG as a “cybernetic organization”; Use of Mandatory Autonomous Systems

1.1.1 The BORG is intended to be considered a “cybernetic organization”— a legal entity contractually mandating the use of certain autonomous technology systems (including certain Multisigs) (the “**Mandatory Autonomous Systems**”) for the holding or management of certain of the entity’s assets or the conduct of the entity’s operations, functions, purposes and/or governance, as further prescribed in these Bylaws

1.1.2 The Mandatory Autonomous Systems are the Safe Smart Contract with address 0xe76A566f44d45879d84000F74F93C5b9F01387C5 on Ethereum (the “**Grants Multisig**”) and (as Guards/Modules thereof) the following Smart Contracts (each having the indicated addresses on Ethereum) modifying the functionality of the Grants Multisig:

- BorgCore: 0x48285021C285750765c3F60e953817523EF0A489
- FailSafeImplant: 0x368E6684433B0d697Aa2B0A8F88c3B87D7EA429f
- EjectImplant: 0xCA941cFA6387C32A8135Abddef01056Ed70C549D
- deadManSwitchCondition:
0x3E13c16B8b2BFBb1A79f00393F9841e19499C49f
- BorgAuth: 0x528E5D1c91645b1581870c216B98e0827BC3a016
- snapShotExecutor: 0x83de3909476A7A36741Da1b9669fBb7fA74c24E8

1.2 Permitted Purposes

The permitted purposes of the BORG (the “**Purposes**”) are to, on a purely volunteer *ad hoc*, episodic basis and without obligation or liability for continuity, promptness, or quality of efforts:

1.2.1 utilize the Blockchain Tokens held by the Grants Multisig (or any proceeds thereof, including conversions of such Blockchain Tokens into fiat currencies) to provide grants, funding, financing, loans, payment for works-for-hire, or other monetary assistance, in each case, as necessary or desirable to obligate, incentivize or reward persons to engage in services, activities, or create deliverables, in each case, that are reasonably expected to be of material benefit to the Community Autonomous Systems or the Community (such uses of the Grants Multisig and its Blockchain Tokens, the “**Authorized Uses**”);

1.2.2 adhere to and enforce the provisions of these Bylaws;

1.2.3 hold and use any Blockchain Tokens lawfully owned by the BORG in support of the upkeep and maintenance of the BORG (including its continued corporate good standing) and the pursuit of the Authorized Uses; and

1.2.4 to do all such other things as are or may be necessary or desirable for any or all of the above-referenced purposes.

1.3 Principles

In pursuing the Purposes or otherwise acting in connection with or utilizing any assets of the BORG, the BORG Personnel shall take into account and seek to adhere to the following principles (the “*Principles*”):

- 1.3.1 The Community Autonomous Systems and their security and utility exist for the benefit of the entire Community and should be fostered and preserved as such by and for the Community. Autonomy and decentralization are core values of the Community, according to which:
 - 1.3.1.1 the Community Autonomous Systems should be autonomous—i.e., should minimize the need for arbitrary, discretionary or continuous intervention or control by or trust in any particular person or group of extrinsically affiliated or associated persons;
 - 1.3.1.2 any residual power of persons over the Community Autonomous Systems should be sufficiently decentralized among independent members of the Community who are incentivized to adhere to the Principles in exercising such power; and
 - 1.3.1.3 the availability and functioning of the Community Autonomous Systems should be neutral and non-discriminatory toward ideological, political, geographical, national, religious, moral, racial, ethnic, gender-based and economic classifications, except to the extent that any of the foregoing are intrinsically incompatible with the other Principles.
- 1.3.2 The goals, norms, values, and principles for the Everclear Systems described in “The Working Constitution of the Everclear DAO,” a copy of which is available at <https://dao-docs.everclear.org/dao-documents/constitution> (as it may be duly amended from time to time by Votable Community Tokens Approval, the “*Everclear DAO Constitution*”).
- 1.3.3 To maintain transparency to the Everclear DAO and Community, the operations of the BORG should be conducted, to the maximum extent reasonably possible, onchain, through use of the Mandatory Autonomous Systems.
- 1.3.4 “*Community*” means all natural and legal persons:
 - 1.3.4.1 who own or have another beneficial or economic interest in the Blockchain Tokens on deposit in the Everclear End-User Systems or the economic rewards (such as trading fees or liquidity-provisioning incentives) accruing in respect of such deposits;
 - 1.3.4.2 who trade, move, transfer, bridge, or effectuate transactions in Blockchain Tokens in, through, or by means of the Everclear End-User Systems in an end-user capacity;
 - 1.3.4.3 who validate, relay, index, order, sequence, or publish proofs with respect to transactions or transaction messages or states or state transitions within the Everclear End-User Systems, or who perform solving, arbitrage, or fulfillment of invoices within the Everclear End-User Systems;
 - 1.3.4.4 who own or have another beneficial or economic interest in CLEAR Tokens; or
 - 1.3.4.5 who own or have another beneficial or economic interest in vbCLEAR positions other Representational Community Tokens the CLEAR Tokens associated with such positions, or the economic rewards (such as trading fees or liquidity-provisioning or governance-participation incentives) accruing in respect of such positions;
 - 1.3.4.6 who own or have another beneficial or economic interest in the Votable Community Tokens (the collective of all such people, the “*Everclear DAO*”); or

1.3.4.7 who devote a substantial amount of their time or resources to researching, developing, or promoting the Everclear Protocol or operating or maintaining the Everclear End-User Systems,

in each case, solely in their capacities as such.

1.4 Transparency

The BORG shall publish and keep publicly available an up-to-date copy of these Bylaws (including the Exhibits and Schedules) on one or more public URLs known to, and accessible by, the Community, and shall promptly publish an announcement of any updates to these Bylaws (including the Exhibits and Schedules) in one or more social media channels or websites known to, and accessible by, the Community.

1.5 Governance

Except for the additional Votable Community Token Approvals set forth in Article 5 and any powers of the Everclear DAO over the Grants Multisig existing by virtue of the Mandatory Autonomous Systems, the BORG shall be governed by the Grants Multisig, voting in accordance with the signature scheme embedded in its smart contract logic, in accordance with the Authorized Uses, pursued in light of the Principles.

1.6 Not-For-Profit; No Members/Owners.

The BORG is a not-for-profit independent association solely pursuing, and governed solely by, the Purposes, in a manner consistent with the Principles, rather than being devoted to the profits or other general benefits or general interests of any particular persons (including the BORG itself, the BORG Personnel or any Community member). The BORG shall have no legal members, shareholders, owners, or beneficiaries.

1.7 Funds Ownership

Any Blockchain Tokens held in or controlled by any Grants Multisig (“**Grants Multisig Funds**”) shall be managed by or under the direction of the Grants Multisig Members, in accordance with the Authorized Uses, pursued in light of the Principles, in accordance with the voting schema embodied in such Grants Multisig.

2 BORG PERSONNEL

The Grants Multisig Members and any employees, independent contractors and other agents and representatives of the BORG are referred to herein as “**BORG Personnel**”. Details of certain BORG Personnel types are set forth below.

2.1 Grants Multisig Members

2.1.1 General. The Multisig Members of each Grants Multisig are referred to herein as “**Grants Multisig Members**” and shall have such rights and obligations as are specified in these Bylaws. The purposes of the Grants Multisig Members shall be to serve on the Grants Multisig. The Grants Multisig Members shall not have any individual powers or authority.

2.1.2 Appointment Of Grants Multisig Members. Persons may only become Grants Multisig Members through an action of the Mandatory Autonomous Systems.

2.1.3 Facilitation of Grants Multisig Member Appointments. The Grants Multisig Members shall use their best efforts to ensure that, prior to becoming a Grants Multisig Member, each person who is to become a Grants Multisig Member first has executed and delivered to the BORG a BORG Participation Agreement in substantially the form attached hereto as Exhibit B (a “**BORG Participation Agreement**”); *provided, however*, that if, notwithstanding such efforts, a person becomes a Grants Multisig Member without having satisfied the preceding conditions, the Grants Multisig Members shall use their best efforts to cause such conditions to be satisfied as promptly as reasonably practicable, and, if such conditions could not reasonably be expected to be satisfied in the near future, to use best

efforts to notify the Community that no BORG Participation Agreement has been obtained from such Grants Multisig Member and the potential consequences of this failure.

- 2.1.4 Removal of Grants Multisig Members.** A Grants Multisig Member may be removed from a Grants Multisig only through an action of the Mandatory Autonomous Systems causing such removal.

2.2 Emergency Supervisors

2.2.1 Purposes and Powers.

2.2.1.1 The Emergency Supervisor shall have the mandate to enforce the rules of the BORG and act in the name of and represent the BORG and to bring claims in the name of the BORG, in each case, solely to the extent necessary or desirable to handle the applicable Adverse Event. The powers of the Emergency Supervisor shall include the power to, to the extent necessary or desirable handle the applicable Adverse Event, initiate and pursue legal proceedings by, on behalf of or in the name of the BORG against one or more Multisig Member(s) or other BORG Personnel or third parties, in each case, who have committed or knowingly assisted in the commission or furtherance of an Adverse Event. The Emergency Supervisor shall set aside their direct and indirect personal interests, and shall solely act in furtherance of the Purposes in accordance with the Principles.

2.2.1.2 The Emergency Supervisor shall observe, implement, carry out, action, and execute any and all Votable Community Tokens Approvals that are lawful, reasonable, and made in good scope, and are within the scope of the Emergency Supervisor's authority, with best efforts and in a commercially reasonable and timely manner and in a manner not inconsistent in any material respect with the Votable Community Tokens Approval(s) appointing and instructing the Emergency Supervisor; provided, however, that the Emergency Supervisor shall not be required to expend any of its own funds or incur any liabilities in performing its duties.

2.2.1.3 To facilitate the powers of the Emergency Supervisor, the Emergency Supervisor shall be deemed a third-party beneficiary of the BORG, all Governance Agreements, and all other contracts or agreements of the BORG.

2.2.2 Appointment.

If there has been an Adverse Event, then, solely to the extent necessary or desirable to investigate, resolve, hold persons liable for, or otherwise handle such Adverse Event or its consequences, the Everclear DAO may appoint by Votable Community Tokens Approval one or more supervisors specifically mandated for such purposes (an "***Emergency Supervisor***"). A person appointed by the Everclear DAO as Emergency Supervisor must affirmatively accept the role of Emergency Supervisor by written notice to the Everclear DAO (e.g. by publishing such notice on one or more public URLs or social media channels known to and accessible by the Community) and the BORG within 30 days after the date of the relevant Votable Community Tokens Approval, and such appointment shall be deemed automatically effective on the date of the last such notice delivered. Failure to affirmatively accept such role as set forth above shall automatically be deemed a rejection of such role on the 30th day after the relevant Votable Community Tokens Approval. Once the Adverse Event has been handled in accordance with all applicable Votable Community Tokens Approvals, the Emergency Supervisor shall publicly resign from the Emergency Supervisor role. The Emergency Supervisor is prohibited from serving in a long-term or indefinite role with the BORG. Any Emergency Supervisor must either resign or be re-appointed by Votable Community Tokens Approval no later than 12 months from the date of the Emergency Supervisor's previous appointment.

2.2.3 Removal of Emergency Supervisor

Emergency Supervisors may be removed, with or without cause, by Votable Community Tokens Approval.

2.2.4 Resignation, Death, or Dissolution of Emergency Supervisors.

2.2.4.1 Any Emergency Supervisor may resign at any time upon written notice to the Community, whereupon such Emergency Supervisor shall cease being an Emergency Supervisor upon the effective time specified in that notice. The resigning Emergency Supervisor shall publish and keep publicly available such notice for at least 7 days after the effective time of the notice, on one or more public URLs known to, and accessible by, the Community, and shall promptly publish, the notice in one or more social media channels or websites known to, and accessible by, the Community. Unless otherwise specified in that notice, the acceptance of the resignation shall not be necessary to make it effective. Any resignation is without prejudice to the rights (if any) of the BORG under any contract to which the Emergency Supervisor is a party.

2.2.4.2 An Emergency Supervisor shall automatically cease being an Emergency Supervisor upon such Emergency Supervisor's death (if the Emergency Supervisor is a natural person) or dissolution (if the Emergency Supervisor is an entity).

2.2.5 Fees And Compensation of Emergency Supervisors.

Emergency Supervisors may be compensated out of the Ops Funds or directly by the Everclear DAO for serving as Emergency Supervisors. The compensation of each Emergency Supervisor shall be set by Votable Community Tokens Approval.

2.2.6 Disputes Regarding Emergency Supervisor Appointment.

Notwithstanding any other provision of these Bylaws, the existence, threat or pendency of any Dispute by a BORG Personnel (other than the Emergency Supervisor) regarding whether an Emergency Supervisor was duly appointed or regarding the scope of authorities of an Emergency Supervisor (including any Dispute regarding the existence of an Adverse Event forming the basis of a Votable Community Tokens Approval of an Emergency Supervisor) shall not excuse any breach or non-performance of these Bylaws or any Governance Agreement by any BORG Personnel (other than the Emergency Supervisor) or any duty owed to the BORG by any BORG Personnel (other than the Emergency Supervisor), and all performance obligations and duties shall continue to apply to all such BORG Personnel during such Dispute.

2.3 Employees, Independent Contractors, Etc.

The BORG may from time to time hire or engage employees, independent contractors, agents, and other representatives of the BORG on commercially reasonable terms, as determined by the Grants Multisig.

3 Grants Multisig

3.1 In General

3.1.1 The BORG shall maintain an up-to-date description of the Grants Multisig in reasonable detail, including by identifying and describing in plain English:

3.1.1.1 the Blockchain System to which the Grants Multisig is deployed;

3.1.1.2 the network address of the Grants Multisig on such Blockchain System, together with any other Mandatory Autonomous Systems Associated therewith;

3.1.1.3 for each Grants Multisig Member with respect to each Grants Multisig, at least one public key address corresponding to the Private Key of such Grants Multisig

Member that belongs to the Multisig Private Key Set for such Grants Multisig; (i.e., the network address used by each Grants Multisig Member for purposes of interacting with the Grants Multisig);

3.1.1.4 the minimum number of Multisig Private Keys required to execute transactions through the Grants Multisig (broken down by transaction type, in the event that different transaction types have different approval thresholds);

3.1.1.5 any and all abilities, powers, and rights such Grants Multisig has with respect to any Community Autonomous Systems, including a technical and plain-English description of each function of a Community Autonomous System over which such Grants Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof;

3.1.1.6 any and all abilities, powers, and rights the Votable Community Tokens or any other Multisig, BORG, Community Autonomous System or Blockchain System has with respect to the Grants Multisig; and

3.1.1.7 a copy of or persistent link to the source code for Grants Multisig (unless such source code is ascertainable from the verified bytecode of the Grants Multisig on generally available blockchain explorers).

The initial such description is attached hereto as Schedule 3.1 (the “*Grants Multisig Schedule*”).

3.1.2 Promptly following each update to the Grants Multisig, the Grants Multisig Members shall amend the Grants Multisig Schedule to include the information specified in Article 3.1.1 and shall publish the updated version.

3.1.3 The Votable Community Tokens may have or be granted powers over a Grants Multisig, including the power to:

3.1.3.1 pause, suspend or terminate any one or more powers the Grants Multisig may have over any Community Autonomous System or Blockchain System or Blockchain Tokens;

3.1.3.2 approve, veto or reverse any action of the Grants Multisig;

3.1.3.3 add, remove, or veto the addition or removal of any Grants Multisig Member from the Grants Multisig; or

3.1.3.4 control the Grants Multisig or any assets held thereby in the event of the resignation or sustained unavailability of all Grants Multisig Members or a dissolution and winding up the BORG.

3.1.4 Each Grants Multisig shall have the exclusive authority to manage the Grants Multisig Funds held in or controlled by such Grants Multisig.

3.1.5 Notwithstanding that a Grants Multisig may be technically or theoretically capable of being used for purpose(s) or circumstance(s) outside the Authorized Uses, neither the BORG nor any of the Grants Multisig Members (nor any of their employees, representatives, agents or delegates) shall utilize any Grants Multisig or any privilege, elevated or exclusive access, power or authority held by the Grants Multisig over any Community Autonomous System except for an Authorized Use.

3.2 Multisig Private Key Management Practices

3.2.1 Each Private Key must be unique to one and only one Grants Multisig Member and not shared with or accessible to the BORG or any other person.

3.2.2 The Private Key shall be the private information of the Grants Multisig Member or Prospective Grants Multisig Member and shall not constitute the property or private information of the BORG. The Private Key of the Grants Multisig Member or

Prospective Grants Multisig Member shall not represent or constitute any interest in or claim to any asset which is controlled by a Multisig.

3.2.3 Each Grants Multisig Member shall securely hold, control, custody and safeguard his, her or its Multisig Private Key(s) and immediately notify the BORG and the other Grants Multisig Members if any of such Grants Multisig Member's Multisig Private Key(s) could reasonably be expected to have been stolen, published or otherwise accessed by, made available to or become known to any other person (including any other Grants Multisig Member).

3.2.4 Grants Multisig Members shall not disclose or make available any Grants Multisig Private Key to, or share any Grants Multisig Private Key with, any other person, including other Grants Multisig Members.

3.3 Ownership of Multisig-Controlled Property

3.3.1 No Grants Multisig Member shall be deemed to own any Blockchain Tokens held in, by or through any Grants Multisig or any other Blockchain Tokens, digital assets or other property held in, by or through, or received by a Grants Multisig Member on account of such Grants Multisig Member's participation in any Grants Multisig (including, without limitation, any "airdrops" or other distributions of Community Tokens or other Blockchain Tokens received or claimable by such Grants Multisig Member's externally owned account or blockchain address on account of such Grants Multisig Member's participation in the Grants Multisig).

3.3.2 In the event a Grants Multisig Member receives any property of the BORG to such Grants Multisig Member's externally owned account or blockchain address, such Grants Multisig Member shall promptly notify the BORG and remit such property to the BORG in the manner directed by the BORG (which may include encumbering such property under the control of a Grants Multisig).

3.4 Grants Multisig Member Proposals

3.4.1 Making Proposals

Any Grants Multisig Member may from time to time propose that a certain action be taken or transaction effected by the Grants Multisig, pursuant to the Authorized Uses. A Grants Multisig Member shall make such a proposal by signing with such Grants Multisig Member's Multisig Private Key a draft executable transaction message that, if such draft executable transaction message receives sufficient other such signatures from other Grants Multisig Members, will be executed by the Grants Multisig (each such proposal, a "***Grants Multisig Proposal***").

3.4.2 Process For Considering and Executing Proposals

The approval of a Grants Multisig Proposal by a sufficient number of Grants Multisig Members of a Grants Multisig (to cause such Grants Multisig to execute such Proposal onchain or as otherwise provided by these Bylaws) shall constitute the action of such Grants Multisig as a body. For the avoidance of doubt, the Grants Multisig Members and the BORG may make use of private mempools and other such confidentiality or transaction prioritization or transaction batching mechanisms in connection with the execution of Proposals, as determined in their reasonable good faith discretion in light of the Authorized Uses, Purposes, and Principles.

3.4.3 Action/Approval of Grants Multisig

Wherever these Bylaws call for the action or approval of the Grants Multisig, the taking of that action or the approval of the relevant proposal or other matter by signatures with the minimum number of Multisig Private Keys required to

approve transactions through the Grants Multisig as set forth (or required to be set forth) on the Grants Multisig Schedule, and the subsequent execution of such approved proposal by the Grants Multisig, shall be sufficient to deem such action taken or such proposal or other matter approved.

3.4.4 Navigating Conflicting Community Interests

In considering how to act in connection with a matter that, when considered in light of the Purposes and the Principles, involves any material conflict, competition or inconsistency among the interests of categories of Community members, each Grants Multisig Member shall act in a manner intended to maximize benefits and minimize harms to the overall Community taking into account all relevant facts and circumstances then known to or reasonably discoverable by such Grants Multisig Member.

4 VOLUNTARY NATURE OF BORG ACTIVITIES; NO GENERAL DUTIES TO COMMUNITY; CONFLICTS OF INTEREST; WAIVER OF FIDUCIARY DUTY; LIMITATION OF LIABILITY

- 4.1** To the maximum extent permitted under applicable Legal Requirements, all activities of the BORG of potential benefit to the Community are to be conducted by the BORG and the BORG Personnel on a purely volunteer, *ad hoc* basis, without any express or implied affirmative promise, duty, obligation, warranty, undertaking or assumption of duty or risk of performing such activities, other than duties owed by BORG Personnel to the BORG.
- 4.2** The BORG and the BORG Personnel each acknowledge and agree that:
 - 4.2.1** The Community members are an unknown, diverse and disparate group of persons, each of whom may have conflicting economic, personal, political, social or other interests and that at any one time any Community member may be in competition with or pursuing interests that are adverse to or inconsistent with the interests of another Community member, and as such none of the BORG or the BORG Personnel are able to, or will, accept, undertake or perform a duty of loyalty to or owe any fiduciary obligation to any single Community member, sub-group of the Community, or the Community as a whole.
 - 4.2.2** The BORG Personnel may have conflicting economic, personal, political, social or other interests and at any time may be in competition with or pursuing interests that are adverse to or inconsistent with the interests of one another, and as such none of the BORG Personnel are able to, or will, accept, undertake or perform a duty of loyalty to or owe any fiduciary obligation to any other BORG Personnel.
- 4.3** No participation in the BORG as a BORG Personnel or otherwise shall constitute, or be deemed to constitute, a trust, partnership, association, joint venture or other unincorporated association or entity among or involving any BORG Personnel (other than the BORG itself). To the maximum extent permitted by law, no BORG Personnel shall be deemed to owe to the Community or any member thereof, any BORG Personnel, or the BORG itself, any fiduciary obligation or duty or any other duties implied by law or implied by equitable principles or imposed by applicable Legal Requirement to the Community or any member thereof.
- 4.4** Neither the Community in general nor any individual member(s) of the Community shall have any interest in the management or affairs of the BORG, except as explicitly stated herein, or as permitted through the Votable Community Tokens. The ability of the Community, or a member of the **Community**, to provide feedback regarding any BORG or Multisig activity or decision through the Votable Community Tokens or otherwise shall not be construed as granting any right to such person with respect to the BORG.
- 4.5** In no event shall the BORG or any of the BORG Personnel, or the Community or any member **thereof**, owe to or incur toward any BORG Personnel (or their representatives) any damages (however caused and under any theory of liability, whether under the Bylaws or otherwise

arising in any way in connection with the services of the BORG Personnel and whether in contract, strict liability, or tort (including negligence or otherwise) even if previously advised of the possibility of such damage), debts, or other liabilities (including any unknown, undisclosed, unmatured, unaccrued, unasserted, contingent, indirect, conditional, implied, vicarious, derivative, joint, several or secondary liabilities) arising from or in connection with the BORG, or the Bylaws, including any of the foregoing arising from any BORG Personnel's (or its representatives') participation in the Grants Multisig ("**Liabilities**").

- 4.6 In no event shall any BORG Personnel (or any of the BORG Personnel's respective representatives) owe to or incur toward the BORG or any BORG Personnel any Liabilities, except **in** the case of an Adverse Event committed by or on behalf of, or with the knowing participation of, such BORG Personnel.
- 4.7 The BORG and each BORG Personnel hereby waives, disclaims, exculpates, and releases, to the maximum extent permitted by law, any and all fiduciary duties and other duties implied in law or in equity of the BORG Personnel owed to the BORG or one another, and any Liability of the BORG Personnel to the BORG or other BORG Personnel, other than for fraud (committed with *scienter*) or knowing and intentional material breach of these Bylaws or the BORG Participation Agreement.
- 4.8 These Bylaws have been made available to the Community so that, among other things, each **Community** member has had a chance to inspect these Bylaws and to be put on notice of, to understand, acknowledge and agree to the limitations under this [Article 4](#).
- 4.9 Conflicts of Interest
 - 4.9.1 Each BORG Personnel shall use reasonable best efforts to continuously monitor and evaluate such BORG Personnel's personal facts and circumstances (including such BORG Personnel's direct and indirect investments and other economic interests in other blockchain-based companies, systems and communities) that could reasonably be expected to give rise to a material conflict of interest on the part of such BORG Personnel in connection with such BORG Personnel's activities relating to the BORG.
 - 4.9.2 If a BORG Personnel becomes aware of an ongoing material conflict of interest with respect to such BORG Personnel's participation in the BORG, such BORG Personnel shall resign from the BORG, unless such conflict of interest has been disclosed (along with all relevant material facts and circumstances) to the Board and the Community in reasonable detail and such BORG Personnel's continued participation in the BORG has been approved by the Grants Multisig notwithstanding such conflict of interest (which consent may be conditioned on appropriate ongoing procedures, disclosures, limitations, or similar terms and conditions, which shall be observed by the applicable BORG Personnel from and thereafter).
 - 4.9.3 The holding, ownership or use of the Votable Community Tokens or any right to receive or purchase any Votable Community Tokens on the part of any BORG Personnel shall not in itself be deemed a conflict of interest. Any continuation of preexisting participation in the research and development of the Protocol or Community-related entities that existed at the time of the BORG Personnel's appointment, to the extent continuing on substantially the same terms and ordinary course of business after joining the BORG, shall not in itself be deemed a conflict of interest.

5 APPROVALS OF MAJOR CHANGES

The following matters shall require both a Grants Multisig Approval and a Votable Community Tokens Approval:

any amendment, addition, deletion, modification, waiver, or change in respect of any one or more of the Purposes, Authorized Uses, or any other provision of these Bylaws referring to the Community (or any sub-constituencies thereof), the Votable Community Tokens, the Mandatory Autonomous Systems or the Grants Multisig whether to be approved via amendment to these

Bylaws or otherwise, where such amendment, addition, deletion, modification, waiver, or change, whether individually or in the aggregate with other amendments, additions, deletions, modifications, waivers, or changes or existing provisions could reasonably be expected to materially adversely modify, limit, eliminate, waive, or otherwise materially adversely affect any power, right, obligation, liability, perquisite, or interest of the Community (or any one or more sub-constituencies of the Community), the Votable Community Tokens or the Grants Multisig;

provided, however, that amending the Grants Multisig Schedule to reflect permitted changes in facts or circumstances regarding the Grants Multisig, or making other similar changes reflecting permitted changes in facts or circumstances, shall not require a Votable Community Tokens Approval.

Any changes or other decisions not requiring a Votable Community Tokens Approval shall be approved by the Grants Multisig.

6 GENERAL PROVISIONS

6.1 Dispute Resolution

6.1.1 Any controversy or claim brought against the BORG by or on behalf of any BORG Personnel or member of the Community relating to the subject matter of these Bylaws (“*Dispute*”) shall be determined and resolved exclusively by confidential, binding arbitration in accordance with rules selected by the Grants Multisig or, if there is an Emergency Supervisor at the time of such Dispute, the Emergency Supervisor (the “*Rules*”). The BORG Personnel expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of the arbitrator(s).

6.1.2 Each BORG Personnel: (i) hereby irrevocably and unconditionally submit to the jurisdiction of the arbitrator(s) for the purpose of any Dispute, including the enforcement of any decision of the arbitrator(s); (ii) agrees not to commence any Dispute except in accordance with these Bylaws, including the use of binding arbitration as set forth above; and (iii) hereby waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any Dispute, any claim that it is not subject personally to the jurisdiction of the arbitrator(s), that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that these Bylaws or the subject matter hereof or thereof may not be enforced in or by such court.

6.1.3 THE BORG AND EACH OF THE BORG PERSONNEL HEREBY WAIVES ITS RIGHTS TO A JURY TRIAL OF ANY DISPUTE. THE SCOPE OF THIS WAIVER IS INTENDED TO BE ALL-ENCOMPASSING OF ANY AND ALL DISPUTES THAT MAY BE FILED IN ANY COURT AND THAT RELATE TO THE SUBJECT MATTER OF ANY OF THE TRANSACTIONS CONTEMPLATED BY THESE BYLAWS, INCLUDING, WITHOUT LIMITATION, CONTRACT CLAIMS, TORT CLAIMS (INCLUDING NEGLIGENCE), BREACH OF DUTY CLAIMS, AND ALL OTHER COMMON LAW AND STATUTORY CLAIMS.

6.2 Amendment; Waiver. These Bylaws may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only by approval of the Grants Multisig; *provided, however*, that any amendment or waiver that could reasonably be expected to adversely affect or limit any right or remedy of the Community or any member thereof shall additionally require Votable Community Tokens Approval.

6.3 Severability. Any term or provision of these Bylaws that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the court

making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and these Bylaws shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, such court or the Grants Multisig shall be empowered to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.

- 6.4 Entire Agreement.** These Bylaws and any other documents or agreements referred to herein or therein constitute the entire agreement and understanding with respect to the subject matter hereof and thereof, and supersedes any and all prior negotiations, correspondence, warrants, agreements, understandings duties or obligations with respect to the subject matter hereof and thereof.
- 6.5 Further Assurances.** The BORG Personnel shall execute and deliver any further instruments or documents and to take all such further actions as may be necessary or advisable in order to carry out the intent of these Bylaws.
- 6.6 Rules of Construction.**
- 6.6.1 *Gender; Etc.*** For purposes of these Bylaws, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
- 6.6.2 *Ambiguities.*** The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of these Bylaws.
- 6.6.3 *No Limitation.*** As used in these Bylaws, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the non-exclusive “or”.
- 6.6.4 *References.*** Except as otherwise indicated, all references in these Bylaws to “Articles,” “Schedules” and “Exhibits” are intended to refer to Articles of these Bylaws and Schedules and Exhibits to these Bylaws.
- 6.6.5 *Hereof.*** The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to these Bylaws as a whole and not to any particular provision of these Bylaws.
- 6.6.6 *Captions/Headings.*** The captions, headings and similar labels contained in these Bylaws are for convenience of reference only, shall not be deemed to be a part of these Bylaws and shall not be referred to in connection with the construction or interpretation of these Bylaws.
- 6.6.7 *Person.*** The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

BORG BYLAWS

SCHEDULE 3.1

1. The Blockchain System to which the Grants Multisig is deployed;
Ethereum Mainnet (Chain ID 1).
2. The network address of the Grants Multisig, together with any other Mandatory Autonomous Systems Associated therewith
 - Grants Multisig: 0xe76A566f44d45879d84000F74F93C5b9F01387C5 on Ethereum
 - BorgCore: 0x48285021C285750765c3F60e953817523EF0A489 on Ethereum
 - FailSafeImplant: 0x368E6684433B0d697Aa2B0A8F88c3B87D7EA429f on Ethereum
 - EjectImplant: 0xCA941cFA6387C32A8135Abddef01056Ed70C549D on Ethereum
 - deadManSwitchCondition: 0x3E13c16B8b2BFBb1A79f00393F9841e19499C49f on Ethereum
 - BorgAuth: 0x528E5D1c91645b1581870c216B98e0827BC3a016 on Ethereum
 - snapShotExecutor: 0x83de3909476A7A36741Da1b9669fBb7fA74c24E8 on Ethereum
3. For each Grants Multisig Member with respect to each Grants Multisig, at least one public key address corresponding to the Private Key of such Grants Multisig Member that belongs to the Multisig Private Key Set for such Grants Multisig; (i.e., the network address used by each Grants Multisig Member for purposes of interacting with the Grants Multisig):
 - Arjun: 0x7fabAdBdF7C144C9E76Ab630c8F3073FFEB5176E
 - Max K: 0xD976faAa19135dB4B846e43DdAaA9C66db842B7B
 - Dima: 0x956B7DB4305C1BCB278d851bbAc4D1f82f8fcA5B
 - Ministro: 0x1723cA992E66ef02a541ee09503F21Ef4029271A
 - Facu: 0xfb4dD6DeE2619ad126b77d68c1659f036363A36d
 - Stefan 0x8D09e20b835009E5320cC11E6a6F00aF451aD669
4. The minimum number of Multisig Private Keys required to execute transactions through the Grants Multisig (broken down by transaction type):
 - 4 of 6 (all transactions)
5. Any and all abilities, powers, and rights such Grants Multisig has with respect to any Community Autonomous Systems, including a technical and plain-English description of each function of each Community Autonomous System over which such Grants Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof:
 - None
6. Any and all abilities, powers, and rights the Votable Community Tokens or any other Multisig, BORG, Community Autonomous System or Blockchain System has with respect to the Grants Multisig, including a technical and plain-English description of each function of a Community Autonomous System over which such Grants Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof:
 - Votable Community Token Approvals can add and remove Grants Multisig Members.
 - Votable Community Token Approvals can reclaim funds for Everclear DAO after failsafe mode is activated, which will occur after the number of Grants Multisig Members falls below four (the signing threshold) or there has been six months or more of inactivity by the Grants Multisig.
7. A copy of or persistent link to the source code for Grants Multisig.

Grants Multisig	https://etherscan.io/address/0xe76A566f44d45879d84000F74F93C5b9F01387C5#code
BorgCore	https://etherscan.io/address/0x48285021C285750765c3F60e953817523EF0A489#code
FailSafeImplant	https://etherscan.io/address/0x368E6684433B0d697Aa2B0A8F88c3B87D7EA429f#code
EjectImplant	https://etherscan.io/address/0xCA941cFA6387C32A8135Abddef01056Ed70C549D#code
deadManSwitchCondition	https://etherscan.io/address/0x3E13c16B8b2BFBb1A79f00393F9841e19499C49f#code
BorgAuth	https://etherscan.io/address/0x528E5D1c91645b1581870c216B98e0827BC3a016#code
snapShotExecutor	https://etherscan.io/address/0x83de3909476A7A36741Da1b9669fBb7fA74c24E8#code

BORG BYLAWS

EXHIBIT A

Certain Defined Terms

“Adverse Event” means (i) any fraud or violation of applicable Legal Requirements committed by or on behalf of the BORG, or by or on behalf of BORG Personnel in connection with the BORG’s activities; (ii) any knowing and intentional material breach of any material term of the Governance Agreements by the BORG or any BORG Personnel that could reasonably be expected to materially adversely impact the BORG or the Community (or any part of the Community); (iii) the commission of a felony or any crime of moral turpitude by any BORG Personnel (whether or not in connection with the BORG or the Community); or (iv) any material legal proceedings by or against the BORG or BORG Personnel in their capacities as such.

“Blockchain” means a distributed data structure consisting of hashlinked sets (‘blocks’) of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

“Blockchain System” means the combination of:

- (a) a Blockchain; and
- (b) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read from, store data with respect to, create public proofs with respect to, or write to such Blockchain.

“Blockchain Tokens” means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

“Community Autonomous Systems”

- (a) the Community Blockchain Systems; and
- (b) if any Community Blockchain System depends for its security or operations on another Blockchain System or any Smart Contracts thereon, such Blockchain System and Smart Contracts, but only to the extent relating to the Community Blockchain Systems.

“Community Blockchain System” means any Blockchain Systems or Smart Contracts governed in or whole in part (in upgradeability or parameters or actions) by the Votable Community Tokens or otherwise considered to be a part of the ‘Everclear protocol’ or ‘official Everclear systems’ by the Community.

“Community Token” means:

- (a) each Blockchain Token belonging to the class of Blockchain Tokens with the symbol ‘CLEAR’ mintable from, and whose balances and transfers are tracked by, the Smart Contract at address 0x58b9cB810A68a7f3e1E4f8Cb45D1B9B3c79705E8 on Ethereum (**“CLEAR Tokens”**), which:
 - (i) have the power to natively govern, secure, utilize or otherwise participate in the Community Autonomous Systems through the Governance Protocol; or
 - (ii) are natively convertible into or stakeable for Representational Community Tokens, which Representational Community Tokens have any one or more of the powers described in the preceding clause ‘(i)’; and
- (b) each Blockchain Tokens belonging to a class of Blockchain Tokens endorsed by Votable Community Tokens Approval as a supplement or successor to the class of Blockchain Tokens referred to in the preceding clause ‘(a)’.

“Ethereum” means, at any time, the canonical blockchain and virtual machine environment of the Ethereum Mainnet ‘mainnet’, as recognized by at least a majority of the validators running correct versions of the go-Ethereum client (‘geth’) then being operated in good faith in the ordinary course of the network. As of the date of these Terms, the Ethereum Mainnet ‘mainnet’ is chainID:1 on networkID:1.

“Everclear End-User Systems” means the Community Autonomous Systems intended for commercial use by end users (i.e., excluding the Community Autonomous Systems relating solely to implementation of the Governance Protocol).

“Governance Agreements” means these Bylaws, the BORG Participation Agreements, and any other written legally binding agreements affecting the governance of the BORG or any BORG Personnel.

“Governance Protocol” means: (a) the portion of the Protocols determining the rules of voting, decisionmaking, and other governance functions of Blockchain Tokens intended to natively govern, secure, utilize or otherwise participate in production implementations of the Protocols; and (b) any generally accepted written rules of voting, decisionmaking, and other governance functions that have been explicitly written at <https://dao-docs.everclear.org/> and have been consistently respected by the Community.

“Legal Requirement” means any federal, state, local, municipal, foreign, supranational or other law, statute, constitution, treaty, directive, resolution, ordinance, code, order, writ, injunction, judgment, edict, decree, ruling, award, rule, regulation, judgment, ruling or requirement issued, enacted, adopted, promulgated, implemented or otherwise put into effect by or under the authority of any (a) nation, multinational, supranational, state, commonwealth, province, territory, county, municipality, district or other jurisdiction of any nature; (b) federal, state, provincial, local, municipal, foreign or other government; (c) instrumentality, subdivision, department, ministry, board, court, administrative agency or commission, or other governmental body, authority or instrumentality or political subdivision thereof; or (d) any quasi-governmental or private body exercising any executive, legislative, judicial, regulatory, taxing, importing or other governmental functions.

“Multisig” means a Smart Contract deployed by or on behalf of the BORG that: (a) is configured to recognize a specified set of Private Keys (the **“Multisig Private Key Set”**); and (b) one or more of the functions of which can be executed in response to a transaction message that has been signed by a specified minimum number of Private Keys belonging to such set of Private Keys.

“Multisig Private Key” means, with respect to each Multisig, each Private Key belonging to the Multisig Private Key Set recognized by such Multisig.

“Multisig Member” means, at any time, each person who, as of such time, holds a Multisig Private Key for a Multisig. For the avoidance of doubt, the term “Multisig Member” shall not include the holders of Votable Community Tokens in their capacity as such, notwithstanding that the Votable Community Tokens may have limited powers over a Multisig.

“Private Key” means a cryptographic key that is intended to be secret and corresponds to at least one public key that: (a) is known to the BORG; and (b) constitutes a Blockchain System address.

“Protocols” means:

- (a) the software published under the github repositories at <https://github.com/everclearorg>, or any successor thereto endorsed by Votable Community Tokens Approval, in each case, so long as such endorsement has not been revoked by Votable Community Tokens Approval; and
- (b) any other software endorsed as an official Protocol by a Votable Community Tokens Approval, so long as such endorsement has not been revoked by Votable Community Tokens Approval.

“Representational Community Tokens” means any Blockchain Token that:

- (a) without reduction or dilution of the value of or economic, governance or other powers and benefits of Community Tokens, is derived from or designed to represent or to be convertible with Community Tokens (or the value of or economic, governance or other powers and benefits

of such Community Tokens) (including pursuant to any ‘liquid staking’ or similar arrangements), natively on the Community Autonomous Systems;

- (b) cannot be minted, generated, credited, assigned or otherwise come into existence without staking, converting, depositing, locking, burning or otherwise removing from circulation a proportional amount of Community Tokens, natively on the Community Autonomous Systems; and
- (c) cannot remain in existence except while the proportional amount of Community Tokens referred to in the preceding clause ‘(b)’ remains staked, converted, deposited, locked, burned or otherwise removed from circulation, natively on the Community Autonomous Systems.

For the avoidance of doubt, Representational Community Tokens with respect to the Community Tokens includes “vote-bonded” Community Tokens (“**vbCLEAR**”).

“Smart Contract” means any executable bytecodes (commonly known as ‘smart contracts’) deployed to Blockchain Systems for operation by node operators running validators, sequencers or similar network operators.

“Votable Community Tokens” all Community Tokens (or Representational Community Tokens) that have the power to vote (or to delegate or assign voting power with respect to) on governance proposals in accordance with the Governance Protocol.

“Votable Community Tokens Approval” means, with respect to any proposal, the affirmative vote of the requisite majority or plurality of the rightful holders of voting power of Votable Community Tokens (including as such voting power may be assigned or delegated to non-Votable-Community-Token-Holders, by holders of Votable Community Tokens, as applicable) necessary to approve or effectuate such proposal in accordance with the Governance Protocol.

BORG BYLAWS

EXHIBIT B

BORG PARTICIPATION AGREEMENT

This BORG Participation Agreement (this “*Agreement*”) is being executed and delivered by the person identified in the `partyName` variable and owning the private key for the `partyBlockchainAddy` variable set during the Adoption Procedures (as defined below) (the “*Prospective BORG Participant*”) and the Everclear Grants BORG, a not-for-profit unincorporated association (the “*BORG*”) as of the later date of the signatures below. Capitalized terms used but not defined herein shall have definitions that are ascribed to them in the Bylaws (as defined below).

By the execution of this Agreement, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Prospective BORG Participant hereby covenants and agrees as follows:

1 Agreement to Bylaws.

1.1 Through the Adoption Procedures, the Prospective BORG Participant is hereby adopting, joining, becoming a party to, and acknowledging and agreeing to the terms and conditions of, and becoming bound by the Bylaws of the BORG a copy of which are attached hereto as Exhibit A (the “*Bylaws*”), as a ‘BORG Personnel’ who is a ‘Grants Multisig Member’ of the Grants Multisig. Without limiting the generality of the foregoing, the Prospective BORG Participant hereby agrees to use all powers, privileges and rights the Prospective BORG Participant may have in, under or by virtue of the Grants Multisig solely in accordance with this Agreement, the Bylaws and for the Authorized Uses, applied in light of the Principles (as defined in the Bylaws).

1.2 “*Adoption Procedures*” means that the Prospective BORG Participant has called the `adoptBORGParticipationAgreement` of the Ricardian Tripler, with such calls passing a single `AgreementDetails` struct and the execution and recording of the results of such calls being finalized (within commercially reasonable norms) on Ethereum, in each case, with the `AgreementDetails` struct including arguments for each of:

- (a) the name of the BORG (`BORGName` string variable);
- (b) the `Party` struct variable for the Prospective BORG Participant, including the blockchain address which the Prospective BORG Participant uses to participate in the Multisigs (`partyBlockchainAddy` address variable), name of the Prospective BORG Participant (`partyName` string variable) (which may be a pseudonym if generally known to the Community) and contact details of the Prospective BORG Participant (including an email address, Telegram username, and/or other details where the Prospective BORG Participant can be notified by the BORG and BORG Personnel of relevant matters electronically) (`contactDetails` string variable); and
- (c) an IPFS URI of this Agreement as the `legalAgreementURI` string variable.

1.3 “*Ricardian Tripler*” means the Smart Contract at address `0xB898246Cb640CCF720994f356F82753036f564b8` on Ethereum.

2 Compensation. The Prospective BORG Participant is agreeing to serve the BORG on a volunteer basis and, unless otherwise agreed in a separate written agreement approved by the BORG, will not entitled to any monetary compensation from the BORG.

3 Additional Multisig Schemes. The BORG may create, and the Prospective BORG Participant may participate in, multiple Multisigs, and, except to the extent otherwise expressly agreed in writing by the BORG and the Prospective BORG Participant, any Multisig created by the BORG and participated in by the Prospective BORG Participant as Multisig Member therein shall automatically be deemed to be covered by the Bylaws and this Agreement.

4 Independent Contractor. The Prospective BORG Participant is an independent contractor of the BORG, and nothing in this Agreement shall be construed as establishing an employment relationship between the BORG or the Prospective BORG Participant (or, if the Prospective BORG Participant

is an entity, between the BORG and any director, officer, manager, employee, independent contractor, shareholder, debtholder, or representative, agent or fiduciary of the Prospective BORG Participant (the Prospective BORG Participant's "***Representatives***").

5 Term.

5.1 The Prospective BORG Participant's service to the BORG shall be "at-will" and may be terminated in accordance with the Bylaws with or without cause, without good reason, or without notice.

5.2 Upon any termination of the Prospective BORG Participant's service to the BORG: (a) all of the BORG's obligations under Section 2 of this Agreement shall be deemed immediately terminated (other than the obligation to pay any accrued but unpaid amounts, pro-rated as applicable); (b) the Prospective BORG Participant shall be required to use all means reasonably requested by or on behalf of the BORG to remove the Prospective BORG Participant and the Prospective BORG Participant's Representatives from all Multisigs; (c) the Prospective BORG Participant's duties relevant to the safekeeping of the Prospective BORG Participant's Key(s) shall continue until such Key has been de-permissioned from all Multisigs; and (d) all other obligations and Liabilities of the Prospective BORG Participant under this Agreement and the Bylaws shall be deemed immediately terminated, waived and released, other than, if any, under the provisions of this Agreement or the Bylaws that by their nature are intended or customarily do survive a termination of contract (including confidentiality obligations) and any Liabilities for fraud (committed with scienter) or intentional and knowing breach of this Agreement or the Bylaws, which shall survive and be continuing. From and after any such termination, the Prospective BORG Participant shall refrain from using the Prospective BORG Participant's Key or otherwise exercising any of the rights, powers or privileges of the Prospective BORG Participant under this Agreement or otherwise available to the Prospective BORG Participant in connection with the Multisigs except to the extent explicitly requested otherwise in writing by the BORG.

6 No Partnership or Implied Entities/Duties/Agency. This Agreement, the Bylaws, and the matters contemplated hereby and thereby do not form, establish, or imply, and nothing contained herein or therein shall be deemed to form, establish or imply a joint venture, partnership, association, unincorporated association or other implied-at-law or implied-at-equity entity or arrangement between or involving the BORG, any of the BORG Personnel, the Prospective BORG Participant, any of the Prospective BORG Participant's Representatives, or the Community or any member thereof, or to create or imply any fiduciary duty or other duty not expressly set forth in this Agreement or the Bylaws other than the covenant of good faith and fair dealing under applicable contract law. None of the foregoing persons will be agent for any of the others or have any authority to make any contract, whether expressly or by implication, in the name of any the others, unless otherwise agreed in a separate written agreement between or among such persons. The Prospective BORG Participant and the BORG may have other business relationships and fee arrangements with other persons, notwithstanding that such persons may conduct similar businesses or activities as or be competitive with the BORG or the Prospective BORG Participant.

7 Governing Law; Dispute Resolution. Article 6.1 of the Bylaws shall apply to this Agreement, *mutatis mutandis*, as if set forth herein.

8 Notices. All notices shall be deemed sent when delivered in accordance with the contactDetails provided during the Adoption Procedures.

9 Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the Prospective BORG Participant, the BORG, and their respective successors and assigns. Nothing in this Agreement, express or implied, is intended to confer upon any person other than the Prospective BORG Participant and the BORG and their respective successors and assigns any rights, remedies, obligations or liabilities under or by reason of this Agreement, except as expressly provided in this Agreement.

10 Counterparts. This Agreement may be executed in any number of separate counterparts, each of which when executed and delivered shall be an original, but all of which together shall constitute one and the same instrument. A counterpart electronically signed via private key signature on

Ethereum as described in the Adoption Procedures shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

- 11 Amendment. Except as otherwise expressly provided in this Agreement, any term of this Agreement may be amended, supplemented, terminated or waived only with the written consent of the BORG and the Prospective BORG Participant; *provided, however*, that any amendment hereto relating to a matter that would otherwise require an amendment to the Bylaws shall not be permitted without obtaining the same consents thereto and approvals therefor that would be required for such an amendment to the Bylaws.
- 12 Severability. Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, such invalid or unenforceable term or provision shall be replaced with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.
- 13 Waiver; Delays or Omissions. No delay or omission to exercise any right, power or remedy by the BORG or the Prospective BORG Participant, upon any breach or default by the other, shall impair any such right, power or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of any such breach or default, or an acquiescence therein, or of or in any similar breach or default thereafter occurring; nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of the BORG or the Prospective BORG Participant of any breach or default under this Agreement, or any waiver on the part of the BORG or the Prospective BORG Participant of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, either under this Agreement or by law or otherwise afforded shall be cumulative and not alternative.
- 14 Parties in Interest. None of the provisions of this Agreement are intended to provide any rights or remedies to any employee, creditor or other person other than the BORG, the Prospective BORG Participant and their respective permitted successors and assigns (if any).
- 15 Entire Agreement. This Agreement constitutes the full and entire understanding and agreement between the Parties with respect to the subject matter hereof, and any other written or oral agreement relating to the subject matter hereof existing between the Parties are expressly voided.
- 16 Further Assurances. Each Prospective BORG Participant shall execute and cause to be delivered to BORG such instruments and other documents, and shall take such other actions, as BORG may reasonably request for the purpose of carrying out or evidencing any of the matters contemplated by this Agreement.
- 17 Rules of Construction.
 - 17.1 *Gender; Etc.* For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
 - 17.2 *Ambiguities*. The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting party shall not be applied in the construction or interpretation of this Agreement.
 - 17.3 *No Limitation*. As used in this Agreement, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the non-exclusive “or”.

- 17.4** *References.* Except as otherwise indicated, all references in this Agreement to “Sections,” “Schedules” and “Exhibits” are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.
- 17.5** *Hereof.* The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.
- 17.6** *Captions.* The captions contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.
- 17.7** *Person.* The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

BORG PARTICIPATION AGREEMENT
EXHIBIT A
BORG BYLAWS

BYLAWS

Of the Everclear Grants BORG

These Bylaws constitute the official bylaws of the **Everclear Grants BORG**, a not-for-profit unincorporated association (the “**BORG**”).

These Bylaws are a legal agreement and contract binding on the Grants Multisig Members, enforceable in accordance with their terms. Each Grants Multisig Member shall execute and deliver to the BORG a BORG Participation Agreement.

Certain capitalized terms used in these Bylaws are defined on Exhibit A.

7 BORG OVERVIEW

7.1 General Nature of the BORG as a “cybernetic organization”; Use of Mandatory Autonomous Systems

7.1.1 The BORG is intended to be considered a “cybernetic organization”— a legal entity contractually mandating the use of certain autonomous technology systems (including certain Multisigs) (the “**Mandatory Autonomous Systems**”) for the holding or management of certain of the entity’s assets or the conduct of the entity’s operations, functions, purposes and/or governance, as further prescribed in these Bylaws

7.1.2 The Mandatory Autonomous Systems are the Safe Smart Contract with address 0xe76A566f44d45879d84000F74F93C5b9F01387C5 on Ethereum (the “**Grants Multisig**”) and (as Guards/Modules thereof) the following Smart Contracts (each having the indicated addresses on Ethereum) modifying the functionality of the Grants Multisig:

- BorgCore: 0x48285021C285750765c3F60e953817523EF0A489
- FailSafeImplant: 0x368E6684433B0d697Aa2B0A8F88c3B87D7EA429f
- EjectImplant: 0xCA941cFA6387C32A8135Abddef01056Ed70C549D
- deadManSwitchCondition:
0x3E13c16B8b2BFBb1A79f00393F9841e19499C49f
- BorgAuth: 0x528E5D1c91645b1581870c216B98e0827BC3a016
- snapShotExecutor: 0x83de3909476A7A36741Da1b9669fBb7fA74c24E8

7.2 Permitted Purposes

The permitted purposes of the BORG (the “**Purposes**”) are to, on a purely volunteer *ad hoc*, episodic basis and without obligation or liability for continuity, promptness, or quality of efforts:

7.2.1 utilize the Blockchain Tokens held by the Grants Multisig (or any proceeds thereof, including conversions of such Blockchain Tokens into fiat currencies) to provide grants, funding, financing, loans, payment for works-for-hire, or other monetary assistance, in each case, as necessary or desirable to obligate, incentivize or reward persons to engage in services, activities, or create deliverables, in each case, that are reasonably expected to be of material benefit to the Community Autonomous Systems or the Community (such uses of the Grants Multisig and its Blockchain Tokens, the “**Authorized Uses**”);

7.2.2 adhere to and enforce the provisions of these Bylaws;

7.2.3 hold and use any Blockchain Tokens lawfully owned by the BORG in support of the upkeep and maintenance of the BORG (including its continued corporate good standing) and the pursuit of the Authorized Uses; and

7.2.4 to do all such other things as are or may be necessary or desirable for any or all of the above-referenced purposes.

7.3 Principles

In pursuing the Purposes or otherwise acting in connection with or utilizing any assets of the BORG, the BORG Personnel shall take into account and seek to adhere to the following principles (the “*Principles*”):

- 7.3.1 The Community Autonomous Systems and their security and utility exist for the benefit of the entire Community and should be fostered and preserved as such by and for the Community. Autonomy and decentralization are core values of the Community, according to which:
 - 7.3.1.1 the Community Autonomous Systems should be autonomous—i.e., should minimize the need for arbitrary, discretionary or continuous intervention or control by or trust in any particular person or group of extrinsically affiliated or associated persons;
 - 7.3.1.2 any residual power of persons over the Community Autonomous Systems should be sufficiently decentralized among independent members of the Community who are incentivized to adhere to the Principles in exercising such power; and
 - 7.3.1.3 the availability and functioning of the Community Autonomous Systems should be neutral and non-discriminatory toward ideological, political, geographical, national, religious, moral, racial, ethnic, gender-based and economic classifications, except to the extent that any of the foregoing are intrinsically incompatible with the other Principles.
- 7.3.2 The goals, norms, values, and principles for the Everclear Systems described in “The Working Constitution of the Everclear DAO,” a copy of which is available at <https://dao-docs.everclear.org/dao-documents/constitution> (as it may be duly amended from time to time by Votable Community Tokens Approval, the “*Everclear DAO Constitution*”).
- 7.3.3 To maintain transparency to the Everclear DAO and Community, the operations of the BORG should be conducted, to the maximum extent reasonably possible, onchain, through use of the Mandatory Autonomous Systems.
- 7.3.4 “*Community*” means all natural and legal persons:
 - 7.3.4.1 who own or have another beneficial or economic interest in the Blockchain Tokens on deposit in the Everclear End-User Systems or the economic rewards (such as trading fees or liquidity-provisioning incentives) accruing in respect of such deposits;
 - 7.3.4.2 who trade, move, transfer, bridge, or effectuate transactions in Blockchain Tokens in, through, or by means of the Everclear End-User Systems in an end-user capacity;
 - 7.3.4.3 who validate, relay, index, order, sequence, or publish proofs with respect to transactions or transaction messages or states or state transitions within the Everclear End-User Systems, or who perform solving, arbitrage, or fulfillment of invoices within the Everclear End-User Systems;
 - 7.3.4.4 who own or have another beneficial or economic interest in CLEAR Tokens; or
 - 7.3.4.5 who own or have another beneficial or economic interest in vbCLEAR positions other Representational Community Tokens the CLEAR Tokens associated with such positions, or the economic rewards (such as trading fees or liquidity-provisioning or governance-participation incentives) accruing in respect of such positions;
 - 7.3.4.6 who own or have another beneficial or economic interest in the Votable Community Tokens (the collective of all such people, the “*Everclear DAO*”); or

7.3.4.7 who devote a substantial amount of their time or resources to researching, developing, or promoting the Everclear Protocol or operating or maintaining the Everclear End-User Systems,

in each case, solely in their capacities as such.

7.4 Transparency

The BORG shall publish and keep publicly available an up-to-date copy of these Bylaws (including the Exhibits and Schedules) on one or more public URLs known to, and accessible by, the Community, and shall promptly publish an announcement of any updates to these Bylaws (including the Exhibits and Schedules) in one or more social media channels or websites known to, and accessible by, the Community.

7.5 Governance

Except for the additional Votable Community Token Approvals set forth in Section 5 and any powers of the Everclear DAO over the Grants Multisig existing by virtue of the Mandatory Autonomous Systems, the BORG shall be governed by the Grants Multisig, voting in accordance with the signature scheme embedded in its smart contract logic, in accordance with the Authorized Uses, pursued in light of the Principles.

7.6 Not-For-Profit; No Members/Owners.

The BORG is a not-for-profit independent association solely pursuing, and governed solely by, the Purposes, in a manner consistent with the Principles, rather than being devoted to the profits or other general benefits or general interests of any particular persons (including the BORG itself, the BORG Personnel or any Community member). The BORG shall have no legal members, shareholders, owners, or beneficiaries.

7.7 Funds Ownership

Any Blockchain Tokens held in or controlled by any Grants Multisig (“**Grants Multisig Funds**”) shall be managed by or under the direction of the Grants Multisig Members, in accordance with the Authorized Uses, pursued in light of the Principles, in accordance with the voting schema embodied in such Grants Multisig.

8 BORG PERSONNEL

The Grants Multisig Members and any employees, independent contractors and other agents and representatives of the BORG are referred to herein as “**BORG Personnel**”. Details of certain BORG Personnel types are set forth below.

8.1 Grants Multisig Members

8.1.1 General. The Multisig Members of each Grants Multisig are referred to herein as “**Grants Multisig Members**” and shall have such rights and obligations as are specified in these Bylaws. The purposes of the Grants Multisig Members shall be to serve on the Grants Multisig. The Grants Multisig Members shall not have any individual powers or authority.

8.1.2 Appointment Of Grants Multisig Members. Persons may only become Grants Multisig Members through an action of the Mandatory Autonomous Systems.

8.1.3 Facilitation of Grants Multisig Member Appointments. The Grants Multisig Members shall use their best efforts to ensure that, prior to becoming a Grants Multisig Member, each person who is to become a Grants Multisig Member first has executed and delivered to the BORG a BORG Participation Agreement in substantially the form attached hereto as Exhibit B (a “**BORG Participation Agreement**”); *provided, however*, that if, notwithstanding such efforts, a person becomes a Grants Multisig Member without having satisfied the preceding conditions, the Grants Multisig Members shall use their best efforts to cause such conditions to be satisfied as promptly as reasonably practicable, and, if such conditions could not reasonably be expected to be satisfied in the near future, to use best

efforts to notify the Community that no BORG Participation Agreement has been obtained from such Grants Multisig Member and the potential consequences of this failure.

- 8.1.4 Removal of Grants Multisig Members.** A Grants Multisig Member may be removed from a Grants Multisig only through an action of the Mandatory Autonomous Systems causing such removal.

8.2 Emergency Supervisors

8.2.1 Purposes and Powers.

8.2.1.1 The Emergency Supervisor shall have the mandate to enforce the rules of the BORG and act in the name of and represent the BORG and to bring claims in the name of the BORG, in each case, solely to the extent necessary or desirable to handle the applicable Adverse Event. The powers of the Emergency Supervisor shall include the power to, to the extent necessary or desirable handle the applicable Adverse Event, initiate and pursue legal proceedings by, on behalf of or in the name of the BORG against one or more Multisig Member(s) or other BORG Personnel or third parties, in each case, who have committed or knowingly assisted in the commission or furtherance of an Adverse Event. The Emergency Supervisor shall set aside their direct and indirect personal interests, and shall solely act in furtherance of the Purposes in accordance with the Principles.

8.2.1.2 The Emergency Supervisor shall observe, implement, carry out, action, and execute any and all Votable Community Tokens Approvals that are lawful, reasonable, and made in good scope, and are within the scope of the Emergency Supervisor's authority, with best efforts and in a commercially reasonable and timely manner and in a manner not inconsistent in any material respect with the Votable Community Tokens Approval(s) appointing and instructing the Emergency Supervisor; provided, however, that the Emergency Supervisor shall not be required to expend any of its own funds or incur any liabilities in performing its duties.

8.2.1.3 To facilitate the powers of the Emergency Supervisor, the Emergency Supervisor shall be deemed a third-party beneficiary of the BORG, all Governance Agreements, and all other contracts or agreements of the BORG.

8.2.2 Appointment.

If there has been an Adverse Event, then, solely to the extent necessary or desirable to investigate, resolve, hold persons liable for, or otherwise handle such Adverse Event or its consequences, the Everclear DAO may appoint by Votable Community Tokens Approval one or more supervisors specifically mandated for such purposes (an "***Emergency Supervisor***"). A person appointed by the Everclear DAO as Emergency Supervisor must affirmatively accept the role of Emergency Supervisor by written notice to the Everclear DAO (e.g. by publishing such notice on one or more public URLs or social media channels known to and accessible by the Community) and the BORG within 30 days after the date of the relevant Votable Community Tokens Approval, and such appointment shall be deemed automatically effective on the date of the last such notice delivered. Failure to affirmatively accept such role as set forth above shall automatically be deemed a rejection of such role on the 30th day after the relevant Votable Community Tokens Approval. Once the Adverse Event has been handled in accordance with all applicable Votable Community Tokens Approvals, the Emergency Supervisor shall publicly resign from the Emergency Supervisor role. The Emergency Supervisor is prohibited from serving in a long-term or indefinite role with the BORG. Any Emergency Supervisor must either resign or be re-appointed by Votable Community Tokens Approval no later than 12 months from the date of the Emergency Supervisor's previous appointment.

8.2.3 Removal of Emergency Supervisor

Emergency Supervisors may be removed, with or without cause, by Votable Community Tokens Approval.

8.2.4 Resignation, Death, or Dissolution of Emergency Supervisors.

8.2.4.1 Any Emergency Supervisor may resign at any time upon written notice to the Community, whereupon such Emergency Supervisor shall cease being an Emergency Supervisor upon the effective time specified in that notice. The resigning Emergency Supervisor shall publish and keep publicly available such notice for at least 7 days after the effective time of the notice, on one or more public URLs known to, and accessible by, the Community, and shall promptly publish, the notice in one or more social media channels or websites known to, and accessible by, the Community. Unless otherwise specified in that notice, the acceptance of the resignation shall not be necessary to make it effective. Any resignation is without prejudice to the rights (if any) of the BORG under any contract to which the Emergency Supervisor is a party.

8.2.4.2 An Emergency Supervisor shall automatically cease being an Emergency Supervisor upon such Emergency Supervisor's death (if the Emergency Supervisor is a natural person) or dissolution (if the Emergency Supervisor is an entity).

8.2.5 Fees And Compensation of Emergency Supervisors.

Emergency Supervisors may be compensated out of the Ops Funds or directly by the Everclear DAO for serving as Emergency Supervisors. The compensation of each Emergency Supervisor shall be set by Votable Community Tokens Approval.

8.2.6 Disputes Regarding Emergency Supervisor Appointment.

Notwithstanding any other provision of these Bylaws, the existence, threat or pendency of any Dispute by a BORG Personnel (other than the Emergency Supervisor) regarding whether an Emergency Supervisor was duly appointed or regarding the scope of authorities of an Emergency Supervisor (including any Dispute regarding the existence of an Adverse Event forming the basis of a Votable Community Tokens Approval of an Emergency Supervisor) shall not excuse any breach or non-performance of these Bylaws or any Governance Agreement by any BORG Personnel (other than the Emergency Supervisor) or any duty owed to the BORG by any BORG Personnel (other than the Emergency Supervisor), and all performance obligations and duties shall continue to apply to all such BORG Personnel during such Dispute.

8.3 Employees, Independent Contractors, Etc.

The BORG may from time to time hire or engage employees, independent contractors, agents, and other representatives of the BORG on commercially reasonable terms, as determined by the Grants Multisig.

9 Grants Multisig

9.1 In General

9.1.1 The BORG shall maintain an up-to-date description of the Grants Multisig in reasonable detail, including by identifying and describing in plain English:

9.1.1.1 the Blockchain System to which the Grants Multisig is deployed;

9.1.1.2 the network address of the Grants Multisig on such Blockchain System, together with any other Mandatory Autonomous Systems Associated therewith;

9.1.1.3 for each Grants Multisig Member with respect to each Grants Multisig, at least one public key address corresponding to the Private Key of such Grants Multisig

Member that belongs to the Multisig Private Key Set for such Grants Multisig; (i.e., the network address used by each Grants Multisig Member for purposes of interacting with the Grants Multisig);

9.1.1.4 the minimum number of Multisig Private Keys required to execute transactions through the Grants Multisig (broken down by transaction type, in the event that different transaction types have different approval thresholds);

9.1.1.5 any and all abilities, powers, and rights such Grants Multisig has with respect to any Community Autonomous Systems, including a technical and plain-English description of each function of a Community Autonomous System over which such Grants Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof;

9.1.1.6 any and all abilities, powers, and rights the Votable Community Tokens or any other Multisig, BORG, Community Autonomous System or Blockchain System has with respect to the Grants Multisig; and

9.1.1.7 a copy of or persistent link to the source code for Grants Multisig (unless such source code is ascertainable from the verified bytecode of the Grants Multisig on generally available blockchain explorers).

The initial such description is attached hereto as Schedule 3.1 (the “*Grants Multisig Schedule*”).

9.1.2 Promptly following each update to the Grants Multisig, the Grants Multisig Members shall amend the Grants Multisig Schedule to include the information specified in Article 3.1.1 and shall publish the updated version.

9.1.3 The Votable Community Tokens may have or be granted powers over a Grants Multisig, including the power to:

9.1.3.1 pause, suspend or terminate any one or more powers the Grants Multisig may have over any Community Autonomous System or Blockchain System or Blockchain Tokens;

9.1.3.2 approve, veto or reverse any action of the Grants Multisig;

9.1.3.3 add, remove, or veto the addition or removal of any Grants Multisig Member from the Grants Multisig; or

9.1.3.4 control the Grants Multisig or any assets held thereby in the event of the resignation or sustained unavailability of all Grants Multisig Members or a dissolution and winding up the BORG.

9.1.4 Each Grants Multisig shall have the exclusive authority to manage the Grants Multisig Funds held in or controlled by such Grants Multisig.

9.1.5 Notwithstanding that a Grants Multisig may be technically or theoretically capable of being used for purpose(s) or circumstance(s) outside the Authorized Uses, neither the BORG nor any of the Grants Multisig Members (nor any of their employees, representatives, agents or delegates) shall utilize any Grants Multisig or any privilege, elevated or exclusive access, power or authority held by the Grants Multisig over any Community Autonomous System except for an Authorized Use.

9.2 Multisig Private Key Management Practices

9.2.1 Each Private Key must be unique to one and only one Grants Multisig Member and not shared with or accessible to the BORG or any other person.

9.2.2 The Private Key shall be the private information of the Grants Multisig Member or Prospective Grants Multisig Member and shall not constitute the property or private information of the BORG. The Private Key of the Grants Multisig Member or

Prospective Grants Multisig Member shall not represent or constitute any interest in or claim to any asset which is controlled by a Multisig.

9.2.3 Each Grants Multisig Member shall securely hold, control, custody and safeguard his, her or its Multisig Private Key(s) and immediately notify the BORG and the other Grants Multisig Members if any of such Grants Multisig Member's Multisig Private Key(s) could reasonably be expected to have been stolen, published or otherwise accessed by, made available to or become known to any other person (including any other Grants Multisig Member).

9.2.4 Grants Multisig Members shall not disclose or make available any Grants Multisig Private Key to, or share any Grants Multisig Private Key with, any other person, including other Grants Multisig Members.

9.3 Ownership of Multisig-Controlled Property

9.3.1 No Grants Multisig Member shall be deemed to own any Blockchain Tokens held in, by or through any Grants Multisig or any other Blockchain Tokens, digital assets or other property held in, by or through, or received by a Grants Multisig Member on account of such Grants Multisig Member's participation in any Grants Multisig (including, without limitation, any "airdrops" or other distributions of Community Tokens or other Blockchain Tokens received or claimable by such Grants Multisig Member's externally owned account or blockchain address on account of such Grants Multisig Member's participation in the Grants Multisig).

9.3.2 In the event a Grants Multisig Member receives any property of the BORG to such Grants Multisig Member's externally owned account or blockchain address, such Grants Multisig Member shall promptly notify the BORG and remit such property to the BORG in the manner directed by the BORG (which may include encumbering such property under the control of a Grants Multisig).

9.4 Grants Multisig Member Proposals

9.4.1 Making Proposals

Any Grants Multisig Member may from time to time propose that a certain action be taken or transaction effected by the Grants Multisig, pursuant to the Authorized Uses. A Grants Multisig Member shall make such a proposal by signing with such Grants Multisig Member's Multisig Private Key a draft executable transaction message that, if such draft executable transaction message receives sufficient other such signatures from other Grants Multisig Members, will be executed by the Grants Multisig (each such proposal, a "***Grants Multisig Proposal***").

9.4.2 Process For Considering and Executing Proposals

The approval of a Grants Multisig Proposal by a sufficient number of Grants Multisig Members of a Grants Multisig (to cause such Grants Multisig to execute such Proposal onchain or as otherwise provided by these Bylaws) shall constitute the action of such Grants Multisig as a body. For the avoidance of doubt, the Grants Multisig Members and the BORG may make use of private mempools and other such confidentiality or transaction prioritization or transaction batching mechanisms in connection with the execution of Proposals, as determined in their reasonable good faith discretion in light of the Authorized Uses, Purposes, and Principles.

9.4.3 Action/Approval of Grants Multisig

Wherever these Bylaws call for the action or approval of the Grants Multisig, the taking of that action or the approval of the relevant proposal or other matter by signatures with the minimum number of Multisig Private Keys required to

approve transactions through the Grants Multisig as set forth (or required to be set forth) on the Grants Multisig Schedule, and the subsequent execution of such approved proposal by the Grants Multisig, shall be sufficient to deem such action taken or such proposal or other matter approved.

9.4.4 Navigating Conflicting Community Interests

In considering how to act in connection with a matter that, when considered in light of the Purposes and the Principles, involves any material conflict, competition or inconsistency among the interests of categories of Community members, each Grants Multisig Member shall act in a manner intended to maximize benefits and minimize harms to the overall Community taking into account all relevant facts and circumstances then known to or reasonably discoverable by such Grants Multisig Member.

10 VOLUNTARY NATURE OF BORG ACTIVITIES; NO GENERAL DUTIES TO COMMUNITY; CONFLICTS OF INTEREST; WAIVER OF FIDUCIARY DUTY; LIMITATION OF LIABILITY

- 10.1** To the maximum extent permitted under applicable Legal Requirements, all activities of the BORG of potential benefit to the Community are to be conducted by the BORG and the BORG Personnel on a purely volunteer, *ad hoc* basis, without any express or implied affirmative promise, duty, obligation, warranty, undertaking or assumption of duty or risk of performing such activities, other than duties owed by BORG Personnel to the BORG.
- 10.2** The BORG and the BORG Personnel each acknowledge and agree that:
- 10.2.1** The Community members are an unknown, diverse and disparate group of persons, each of whom may have conflicting economic, personal, political, social or other interests and that at any one time any Community member may be in competition with or pursuing interests that are adverse to or inconsistent with the interests of another Community member, and as such none of the BORG or the BORG Personnel are able to, or will, accept, undertake or perform a duty of loyalty to or owe any fiduciary obligation to any single Community member, sub-group of the Community, or the Community as a whole.
- 10.2.2** The BORG Personnel may have conflicting economic, personal, political, social or other interests and at any time may be in competition with or pursuing interests that are adverse to or inconsistent with the interests of one another, and as such none of the BORG Personnel are able to, or will, accept, undertake or perform a duty of loyalty to or owe any fiduciary obligation to any other BORG Personnel.
- 10.3** No participation in the BORG as a BORG Personnel or otherwise shall constitute, or be deemed to constitute, a trust, partnership, association, joint venture or other unincorporated association or entity among or involving any BORG Personnel (other than the BORG itself). To the maximum extent permitted by law, no BORG Personnel shall be deemed to owe to the Community or any member thereof, any BORG Personnel, or the BORG itself, any fiduciary obligation or duty or any other duties implied by law or implied by equitable principles or imposed by applicable Legal Requirement to the Community or any member thereof.
- 10.4** Neither the Community in general nor any individual member(s) of the Community shall have any interest in the management or affairs of the BORG, except as explicitly stated herein, or as permitted through the Votable Community Tokens. The ability of the Community, or a member of the **Community**, to provide feedback regarding any BORG or Multisig activity or decision through the Votable Community Tokens or otherwise shall not be construed as granting any right to such person with respect to the BORG.
- 10.5** In no event shall the BORG or any of the BORG Personnel, or the Community or any member **thereof**, owe to or incur toward any BORG Personnel (or their representatives) any damages (however caused and under any theory of liability, whether under the Bylaws or otherwise

arising in any way in connection with the services of the BORG Personnel and whether in contract, strict liability, or tort (including negligence or otherwise) even if previously advised of the possibility of such damage), debts, or other liabilities (including any unknown, undisclosed, unmatured, unaccrued, unasserted, contingent, indirect, conditional, implied, vicarious, derivative, joint, several or secondary liabilities) arising from or in connection with the BORG, or the Bylaws, including any of the foregoing arising from any BORG Personnel's (or its representatives') participation in the Grants Multisig ("**Liabilities**").

- 10.6** In no event shall any BORG Personnel (or any of the BORG Personnel's respective representatives) owe to or incur toward the BORG or any BORG Personnel any Liabilities, except **in** the case of an Adverse Event committed by or on behalf of, or with the knowing participation of, such BORG Personnel.
- 10.7** The BORG and each BORG Personnel hereby waives, disclaims, exculpates, and releases, to the maximum extent permitted by law, any and all fiduciary duties and other duties implied in law or in equity of the BORG Personnel owed to the BORG or one another, and any Liability of the BORG Personnel to the BORG or other BORG Personnel, other than for fraud (committed with *scienter*) or knowing and intentional material breach of these Bylaws or the BORG Participation Agreement.
- 10.8** These Bylaws have been made available to the Community so that, among other things, each **Community** member has had a chance to inspect these Bylaws and to be put on notice of, to understand, acknowledge and agree to the limitations under this [Article 4](#).
- 10.9** Conflicts of Interest
- 10.9.1** Each BORG Personnel shall use reasonable best efforts to continuously monitor and evaluate such BORG Personnel's personal facts and circumstances (including such BORG Personnel's direct and indirect investments and other economic interests in other blockchain-based companies, systems and communities) that could reasonably be expected to give rise to a material conflict of interest on the part of such BORG Personnel in connection with such BORG Personnel's activities relating to the BORG.
- 10.9.2** If a BORG Personnel becomes aware of an ongoing material conflict of interest with respect to such BORG Personnel's participation in the BORG, such BORG Personnel shall resign from the BORG, unless such conflict of interest has been disclosed (along with all relevant material facts and circumstances) to the Board and the Community in reasonable detail and such BORG Personnel's continued participation in the BORG has been approved by the Grants Multisig notwithstanding such conflict of interest (which consent may be conditioned on appropriate ongoing procedures, disclosures, limitations, or similar terms and conditions, which shall be observed by the applicable BORG Personnel from and thereafter).
- 10.9.3** The holding, ownership or use of the Votable Community Tokens or any right to receive or purchase any Votable Community Tokens on the part of any BORG Personnel shall not in itself be deemed a conflict of interest. Any continuation of preexisting participation in the research and development of the Protocol or Community-related entities that existed at the time of the BORG Personnel's appointment, to the extent continuing on substantially the same terms and ordinary course of business after joining the BORG, shall not in itself be deemed a conflict of interest.

11 APPROVALS OF MAJOR CHANGES

The following matters shall require both a Grants Multisig Approval and a Votable Community Tokens Approval:

any amendment, addition, deletion, modification, waiver, or change in respect of any one or more of the Purposes, Authorized Uses, or any other provision of these Bylaws referring to the Community (or any sub-constituencies thereof), the Votable Community Tokens, the Mandatory Autonomous Systems or the Grants Multisig whether to be approved via amendment to these

Bylaws or otherwise, where such amendment, addition, deletion, modification, waiver, or change, whether individually or in the aggregate with other amendments, additions, deletions, modifications, waivers, or changes or existing provisions could reasonably be expected to materially adversely modify, limit, eliminate, waive, or otherwise materially adversely affect any power, right, obligation, liability, perquisite, or interest of the Community (or any one or more sub-constituencies of the Community), the Votable Community Tokens or the Grants Multisig;

provided, however, that amending the Grants Multisig Schedule to reflect permitted changes in facts or circumstances regarding the Grants Multisig, or making other similar changes reflecting permitted changes in facts or circumstances, shall not require a Votable Community Tokens Approval.

Any changes or other decisions not requiring a Votable Community Tokens Approval shall be approved by the Grants Multisig.

12 GENERAL PROVISIONS

12.1 Dispute Resolution

12.1.1 Any controversy or claim brought against the BORG by or on behalf of any BORG Personnel or member of the Community relating to the subject matter of these Bylaws (“*Dispute*”) shall be determined and resolved exclusively by confidential, binding arbitration in accordance with rules selected by the Grants Multisig or, if there is an Emergency Supervisor at the time of such Dispute, the Emergency Supervisor (the “*Rules*”). The BORG Personnel expressly waive any right under the laws of any jurisdiction to appeal or otherwise challenge the award, ruling or decision of the arbitrator(s).

12.1.2 Each BORG Personnel: (i) hereby irrevocably and unconditionally submit to the jurisdiction of the arbitrator(s) for the purpose of any Dispute, including the enforcement of any decision of the arbitrator(s); (ii) agrees not to commence any Dispute except in accordance with these Bylaws, including the use of binding arbitration as set forth above; and (iii) hereby waive, and agree not to assert, by way of motion, as a defense, or otherwise, in any Dispute, any claim that it is not subject personally to the jurisdiction of the arbitrator(s), that its property is exempt or immune from attachment or execution, that the suit, action or proceeding is brought in an inconvenient forum, that the venue of the suit, action or proceeding is improper or that these Bylaws or the subject matter hereof or thereof may not be enforced in or by such court.

12.1.3 THE BORG AND EACH OF THE BORG PERSONNEL HEREBY WAIVES ITS RIGHTS TO A JURY TRIAL OF ANY DISPUTE. THE SCOPE OF THIS WAIVER IS INTENDED TO BE ALL-ENCOMPASSING OF ANY AND ALL DISPUTES THAT MAY BE FILED IN ANY COURT AND THAT RELATE TO THE SUBJECT MATTER OF ANY OF THE TRANSACTIONS CONTEMPLATED BY THESE BYLAWS, INCLUDING, WITHOUT LIMITATION, CONTRACT CLAIMS, TORT CLAIMS (INCLUDING NEGLIGENCE), BREACH OF DUTY CLAIMS, AND ALL OTHER COMMON LAW AND STATUTORY CLAIMS.

12.2 Amendment; Waiver. These Bylaws may be amended and provisions may be waived (either generally or in a particular instance and either retroactively or prospectively), only by approval of the Grants Multisig; *provided, however*, that any amendment or waiver that could reasonably be expected to adversely affect or limit any right or remedy of the Community or any member thereof shall additionally require Votable Community Tokens Approval.

12.3 Severability. Any term or provision of these Bylaws that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the court

making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and these Bylaws shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, such court or the Grants Multisig shall be empowered to replace such invalid or unenforceable term or provision with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.

12.4 Entire Agreement. These Bylaws and any other documents or agreements referred to herein or therein constitute the entire agreement and understanding with respect to the subject matter hereof and thereof, and supersedes any and all prior negotiations, correspondence, warrants, agreements, understandings duties or obligations with respect to the subject matter hereof and thereof.

12.5 Further Assurances. The BORG Personnel shall execute and deliver any further instruments or documents and to take all such further actions as may be necessary or advisable in order to carry out the intent of these Bylaws.

12.6 Rules of Construction.

12.6.1 *Gender; Etc.* For purposes of these Bylaws, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.

12.6.2 *Ambiguities.* The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting Party shall not be applied in the construction or interpretation of these Bylaws.

12.6.3 *No Limitation.* As used in these Bylaws, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the non-exclusive “or”.

12.6.4 *References.* Except as otherwise indicated, all references in these Bylaws to “Articles,” “Schedules” and “Exhibits” are intended to refer to Articles of these Bylaws and Schedules and Exhibits to these Bylaws.

12.6.5 *Hereof.* The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to these Bylaws as a whole and not to any particular provision of these Bylaws.

12.6.6 *Captions/Headings.* The captions, headings and similar labels contained in these Bylaws are for convenience of reference only, shall not be deemed to be a part of these Bylaws and shall not be referred to in connection with the construction or interpretation of these Bylaws.

12.6.7 *Person.* The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

BORG BYLAWS

SCHEDULE 3.1

4. The Blockchain System to which the Grants Multisig is deployed;
Ethereum Mainnet (Chain ID 1).
5. The network address of the Grants Multisig, together with any other Mandatory Autonomous Systems Associated therewith
 - Grants Multisig: 0xe76A566f44d45879d84000F74F93C5b9F01387C5 on Ethereum
 - BorgCore: 0x48285021C285750765c3F60e953817523EF0A489 on Ethereum
 - FailSafeImplant: 0x368E6684433B0d697Aa2B0A8F88c3B87D7EA429f on Ethereum
 - EjectImplant: 0xCA941cFA6387C32A8135Abddef01056Ed70C549D on Ethereum
 - deadManSwitchCondition: 0x3E13c16B8b2BFBb1A79f00393F9841e19499C49f on Ethereum
 - BorgAuth: 0x528E5D1c91645b1581870c216B98e0827BC3a016 on Ethereum
 - snapShotExecutor: 0x83de3909476A7A36741Da1b9669fBb7fA74c24E8 on Ethereum
6. For each Grants Multisig Member with respect to each Grants Multisig, at least one public key address corresponding to the Private Key of such Grants Multisig Member that belongs to the Multisig Private Key Set for such Grants Multisig; (i.e., the network address used by each Grants Multisig Member for purposes of interacting with the Grants Multisig):
 - Arjun: 0x7fabAdBdF7C144C9E76Ab630c8F3073FFEB5176E
 - Max K: 0xD976faAa19135dB4B846e43DdAaA9C66db842B7B
 - Dima: 0x956B7DB4305C1BCB278d851bbAc4D1f82f8fcA5B
 - Ministro: 0x1723cA992E66ef02a541ee09503F21Ef4029271A
 - Facu: 0xfb4dD6DeE2619ad126b77d68c1659f036363A36d
 - Stefan 0x8D09e20b835009E5320cC11E6a6F00aF451aD669
9. The minimum number of Multisig Private Keys required to execute transactions through the Grants Multisig (broken down by transaction type):
 - 4 of 6 (all transactions)
10. Any and all abilities, powers, and rights such Grants Multisig has with respect to any Community Autonomous Systems, including a technical and plain-English description of each function of each Community Autonomous System over which such Grants Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof:
 - None
11. Any and all abilities, powers, and rights the Votable Community Tokens or any other Multisig, BORG, Community Autonomous System or Blockchain System has with respect to the Grants Multisig, including a technical and plain-English description of each function of a Community Autonomous System over which such Grants Multisig has privileged, elevated or exclusive access, power or authority and the intended uses thereof:
 - Votable Community Token Approvals can add and remove Grants Multisig Members.
 - Votable Community Token Approvals can reclaim funds for Everclear DAO after failsafe mode is activated, which will occur after the number of Grants Multisig Members falls below four (the signing threshold) or there has been six months or more of inactivity by the Grants Multisig.
7. A copy of or persistent link to the source code for Grants Multisig.

Grants Multisig	https://etherscan.io/address/0xe76A566f44d45879d84000F74F93C5b9F01387C5#code
BorgCore	https://etherscan.io/address/0x48285021C285750765c3F60e953817523EF0A489#code
FailSafeImplant	https://etherscan.io/address/0x368E6684433B0d697Aa2B0A8F88c3B87D7EA429f#code
EjectImplant	https://etherscan.io/address/0xCA941cFA6387C32A8135Abddef01056Ed70C549D#code
deadManSwitchCondition	https://etherscan.io/address/0x3E13c16B8b2BFBb1A79f00393F9841e19499C49f#code
BorgAuth	https://etherscan.io/address/0x528E5D1c91645b1581870c216B98e0827BC3a016#code
snapShotExecutor	https://etherscan.io/address/0x83de3909476A7A36741Da1b9669fBb7fA74c24E8#code

BORG BYLAWS

EXHIBIT A

Certain Defined Terms

“Adverse Event” means (i) any fraud or violation of applicable Legal Requirements committed by or on behalf of the BORG, or by or on behalf of BORG Personnel in connection with the BORG’s activities; (ii) any knowing and intentional material breach of any material term of the Governance Agreements by the BORG or any BORG Personnel that could reasonably be expected to materially adversely impact the BORG or the Community (or any part of the Community); (iii) the commission of a felony or any crime of moral turpitude by any BORG Personnel (whether or not in connection with the BORG or the Community); or (iv) any material legal proceedings by or against the BORG or BORG Personnel in their capacities as such.

“Blockchain” means a distributed data structure consisting of hashlinked sets (‘blocks’) of transactions that is directly or indirectly produced, maintained and/or secured by the automated consensus of a network of independent nodes operating a byzantine-fault-tolerant protocol.

“Blockchain System” means the combination of:

- (c) a Blockchain; and
- (d) a network of one or more devices operating software clients or software applications that jointly or individually store, validate, process transactions with respect to, update, resolve forks with respect to or otherwise maintain, validate, read from, store data with respect to, create public proofs with respect to, or write to such Blockchain.

“Blockchain Tokens” means any virtual currency, token, or other unit of account or medium of exchange that is implemented exclusively or primarily on a Blockchain System, regardless of whether transferable, non-transferable, fungible or non-fungible.

“Community Autonomous Systems”

- (c) the Community Blockchain Systems; and
- (d) if any Community Blockchain System depends for its security or operations on another Blockchain System or any Smart Contracts thereon, such Blockchain System and Smart Contracts, but only to the extent relating to the Community Blockchain Systems.

“Community Blockchain System” means any Blockchain Systems or Smart Contracts governed in or whole in part (in upgradeability or parameters or actions) by the Votable Community Tokens or otherwise considered to be a part of the ‘Everclear protocol’ or ‘official Everclear systems’ by the Community.

“Community Token” means:

- (c) each Blockchain Token belonging to the class of Blockchain Tokens with the symbol ‘CLEAR’ mintable from, and whose balances and transfers are tracked by, the Smart Contract at address 0x58b9cB810A68a7f3e1E4f8Cb45D1B9B3c79705E8 on Ethereum (**“CLEAR Tokens”**), which:
 - (i) have the power to natively govern, secure, utilize or otherwise participate in the Community Autonomous Systems through the Governance Protocol; or
 - (ii) are natively convertible into or stakeable for Representational Community Tokens, which Representational Community Tokens have any one or more of the powers described in the preceding clause ‘(i)’; and
- (d) each Blockchain Tokens belonging to a class of Blockchain Tokens endorsed by Votable Community Tokens Approval as a supplement or successor to the class of Blockchain Tokens referred to in the preceding clause ‘(a)’.

“Ethereum” means, at any time, the canonical blockchain and virtual machine environment of the Ethereum Mainnet ‘mainnet’, as recognized by at least a majority of the validators running correct versions of the go-Ethereum client (‘geth’) then being operated in good faith in the ordinary course of the network. As of the date of these Terms, the Ethereum Mainnet ‘mainnet’ is chainID:1 on networkID:1.

“Everclear End-User Systems” means the Community Autonomous Systems intended for commercial use by end users (i.e., excluding the Community Autonomous Systems relating solely to implementation of the Governance Protocol).

“Governance Agreements” means these Bylaws, the BORG Participation Agreements, and any other written legally binding agreements affecting the governance of the BORG or any BORG Personnel.

“Governance Protocol” means: (a) the portion of the Protocols determining the rules of voting, decisionmaking, and other governance functions of Blockchain Tokens intended to natively govern, secure, utilize or otherwise participate in production implementations of the Protocols; and (b) any generally accepted written rules of voting, decisionmaking, and other governance functions that have been explicitly written at <https://dao-docs.everclear.org/> and have been consistently respected by the Community.

“Legal Requirement” means any federal, state, local, municipal, foreign, supranational or other law, statute, constitution, treaty, directive, resolution, ordinance, code, order, writ, injunction, judgment, edict, decree, ruling, award, rule, regulation, judgment, ruling or requirement issued, enacted, adopted, promulgated, implemented or otherwise put into effect by or under the authority of any (a) nation, multinational, supranational, state, commonwealth, province, territory, county, municipality, district or other jurisdiction of any nature; (b) federal, state, provincial, local, municipal, foreign or other government; (c) instrumentality, subdivision, department, ministry, board, court, administrative agency or commission, or other governmental body, authority or instrumentality or political subdivision thereof; or (d) any quasi-governmental or private body exercising any executive, legislative, judicial, regulatory, taxing, importing or other governmental functions.

“Multisig” means a Smart Contract deployed by or on behalf of the BORG that: (a) is configured to recognize a specified set of Private Keys (the **“Multisig Private Key Set”**); and (b) one or more of the functions of which can be executed in response to a transaction message that has been signed by a specified minimum number of Private Keys belonging to such set of Private Keys.

“Multisig Private Key” means, with respect to each Multisig, each Private Key belonging to the Multisig Private Key Set recognized by such Multisig.

“Multisig Member” means, at any time, each person who, as of such time, holds a Multisig Private Key for a Multisig. For the avoidance of doubt, the term “Multisig Member” shall not include the holders of Votable Community Tokens in their capacity as such, notwithstanding that the Votable Community Tokens may have limited powers over a Multisig.

“Private Key” means a cryptographic key that is intended to be secret and corresponds to at least one public key that: (a) is known to the BORG; and (b) constitutes a Blockchain System address.

“Protocols” means:

- (c) the software published under the github repositories at <https://github.com/everclearorg>, or any successor thereto endorsed by Votable Community Tokens Approval, in each case, so long as such endorsement has not been revoked by Votable Community Tokens Approval; and
- (d) any other software endorsed as an official Protocol by a Votable Community Tokens Approval, so long as such endorsement has not been revoked by Votable Community Tokens Approval.

“Representational Community Tokens” means any Blockchain Token that:

- (d) without reduction or dilution of the value of or economic, governance or other powers and benefits of Community Tokens, is derived from or designed to represent or to be convertible with Community Tokens (or the value of or economic, governance or other powers and benefits

of such Community Tokens) (including pursuant to any ‘liquid staking’ or similar arrangements), natively on the Community Autonomous Systems;

- (e) cannot be minted, generated, credited, assigned or otherwise come into existence without staking, converting, depositing, locking, burning or otherwise removing from circulation a proportional amount of Community Tokens, natively on the Community Autonomous Systems; and
- (f) cannot remain in existence except while the proportional amount of Community Tokens referred to in the preceding clause ‘(b)’ remains staked, converted, deposited, locked, burned or otherwise removed from circulation, natively on the Community Autonomous Systems.

For the avoidance of doubt, Representational Community Tokens with respect to the Community Tokens includes “vote-bonded” Community Tokens (“**vbCLEAR**”).

“**Smart Contract**” means any executable bytecodes (commonly known as ‘smart contracts’) deployed to Blockchain Systems for operation by node operators running validators, sequencers or similar network operators.

“**Votable Community Tokens**” all Community Tokens (or Representational Community Tokens) that have the power to vote (or to delegate or assign voting power with respect to) on governance proposals in accordance with the Governance Protocol.

“**Votable Community Tokens Approval**” means, with respect to any proposal, the affirmative vote of the requisite majority or plurality of the rightful holders of voting power of Votable Community Tokens (including as such voting power may be assigned or delegated to non-Votable-Community-Token-Holders, by holders of Votable Community Tokens, as applicable) necessary to approve or effectuate such proposal in accordance with the Governance Protocol.

BORG BYLAWS

EXHIBIT B

BORG PARTICIPATION AGREEMENT

This BORG Participation Agreement (this “*Agreement*”) is being executed and delivered by the person identified in the `partyName` variable and owning the private key for the `partyBlockchainAddy` variable set during the Adoption Procedures (as defined below) (the “*Prospective BORG Participant*”) and the Everclear Grants BORG, a not-for-profit unincorporated association (the “*BORG*”) as of the later date of the signatures below. Capitalized terms used but not defined herein shall have definitions that are ascribed to them in the Bylaws (as defined below).

By the execution of this Agreement, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Prospective BORG Participant hereby covenants and agrees as follows:

18 Agreement to Bylaws.

18.1 Through the Adoption Procedures, the Prospective BORG Participant is hereby adopting, joining, becoming a party to, and acknowledging and agreeing to the terms and conditions of, and becoming bound by the Bylaws of the BORG a copy of which are attached hereto as Exhibit A (the “*Bylaws*”), as a ‘BORG Personnel’ who is a ‘Grants Multisig Member’ of the Grants Multisig. Without limiting the generality of the foregoing, the Prospective BORG Participant hereby agrees to use all powers, privileges and rights the Prospective BORG Participant may have in, under or by virtue of the Grants Multisig solely in accordance with this Agreement, the Bylaws and for the Authorized Uses, applied in light of the Principles (as defined in the Bylaws).

18.2 “*Adoption Procedures*” means that the Prospective BORG Participant has called the `adoptBORGParticipationAgreement` of the Ricardian Tripler, with such calls passing a single `AgreementDetails` struct and the execution and recording of the results of such calls being finalized (within commercially reasonable norms) on Ethereum, in each case, with the `AgreementDetails` struct including arguments for each of:

(d) the name of the BORG (`BORGName` string variable);

(e) the `Party` struct variable for the Prospective BORG Participant, including the blockchain address which the Prospective BORG Participant uses to participate in the Multisigs (`partyBlockchainAddy` address variable), name of the Prospective BORG Participant (`partyName` string variable) (which may be a pseudonym if generally known to the Community) and contact details of the Prospective BORG Participant (including an email address, Telegram username, and/or other details where the Prospective BORG Participant can be notified by the BORG and BORG Personnel of relevant matters electronically) (`contactDetails` string variable); and

(f) an IPFS URI of this Agreement as the `legalAgreementURI` string variable.

18.3 “*Ricardian Tripler*” means the Smart Contract at address `0xB898246Cb640CCF720994f356F82753036f564b8` on Ethereum.

19 Compensation. The Prospective BORG Participant is agreeing to serve the BORG on a volunteer basis and, unless otherwise agreed in a separate written agreement approved by the BORG, will not entitled to any monetary compensation from the BORG.

20 Additional Multisig Schemes. The BORG may create, and the Prospective BORG Participant may participate in, multiple Multisigs, and, except to the extent otherwise expressly agreed in writing by the BORG and the Prospective BORG Participant, any Multisig created by the BORG and participated in by the Prospective BORG Participant as Multisig Member therein shall automatically be deemed to be covered by the Bylaws and this Agreement.

21 Independent Contractor. The Prospective BORG Participant is an independent contractor of the BORG, and nothing in this Agreement shall be construed as establishing an employment relationship between the BORG or the Prospective BORG Participant (oWr, if the Prospective BORG Participant

is an entity, between the BORG and any director, officer, manager, employee, independent contractor, shareholder, debtholder, or representative, agent or fiduciary of the Prospective BORG Participant (the Prospective BORG Participant's "***Representatives***").

22 Term.

22.1 The Prospective BORG Participant's service to the BORG shall be "at-will" and may be terminated in accordance with the Bylaws with or without cause, without good reason, or without notice.

22.2 Upon any termination of the Prospective BORG Participant's service to the BORG: (a) all of the BORG's obligations under Section 2 of this Agreement shall be deemed immediately terminated (other than the obligation to pay any accrued but unpaid amounts, pro-rated as applicable); (b) the Prospective BORG Participant shall be required to use all means reasonably requested by or on behalf of the BORG to remove the Prospective BORG Participant and the Prospective BORG Participant's Representatives from all Multisigs; (c) the Prospective BORG Participant's duties relevant to the safekeeping of the Prospective BORG Participant's Key(s) shall continue until such Key has been de-permissioned from all Multisigs; and (d) all other obligations and Liabilities of the Prospective BORG Participant under this Agreement and the Bylaws shall be deemed immediately terminated, waived and released, other than, if any, under the provisions of this Agreement or the Bylaws that by their nature are intended or customarily do survive a termination of contract (including confidentiality obligations) and any Liabilities for fraud (committed with scienter) or intentional and knowing breach of this Agreement or the Bylaws, which shall survive and be continuing. From and after any such termination, the Prospective BORG Participant shall refrain from using the Prospective BORG Participant's Key or otherwise exercising any of the rights, powers or privileges of the Prospective BORG Participant under this Agreement or otherwise available to the Prospective BORG Participant in connection with the Multisigs except to the extent explicitly requested otherwise in writing by the BORG.

23 No Partnership or Implied Entities/Duties/AgencWy. This Agreement, the Bylaws, and the matters contemplated hereby and thereby do not form, establish, or imply, and nothing contained herein or therein shall be deemed to form, establish or imply a joint venture, partnership, association, unincorporated association or other implied-at-law or implied-at-equity entity or arrangement between or involving the BORG, any of the BORG Personnel, the Prospective BORG Participant, any of the Prospective BORG Participant's Representatives, or the Community or any member thereof, or to create or imply any fiduciary duty or other duty not expressly set forth in this Agreement or the Bylaws other than the covenant of good faith and fair dealing under applicable contract law. None of the foregoing persons will be agent for any of the others or have any authority to make any contract, whether expressly or by implication, in the name of any the others, unless otherwise agreed in a separate written agreement between or among such persons. The Prospective BORG Participant and the BORG may have other business relationships and fee arrangements with other persons, notwithstanding that such persons may conduct similar businesses or activities as or be competitive with the BORG or the Prospective BORG Participant.

24 Governing Law; Dispute Resolution. Article 6.1 of the Bylaws shall apply to this Agreement, *mutatis mutandis*, as if set forth herein.

25 Notices. All notices shall be deemed sent when delivered in accordance with the contactDetails provided during the Adoption Procedures.

26 Successors and Assigns. The terms and conditions of this Agreement shall inure to the benefit of and be binding upon the Prospective BORG Participant, the BORG, and their respective successors and assigns. Nothing in this Agreement, express or implied, is intended to confer upon any person other than the Prospective BORG Participant and the BORG and their respective successors and assigns any rights, remedies, obligations or liabilities under or by reason of this Agreement, except as expressly provided in this Agreement.

27 Counterparts. This Agreement may be executed in any number of separate counterparts, each of which when executed and delivered shall be an original, but all of which together shall constitute one and the same instrument. A counterpart electronically signed via private key signature on

Ethereum as described in the Adoption Procedures shall be deemed to have been duly and validly delivered and be valid and effective for all purposes.

- 28 Amendment.** Except as otherwise expressly provided in this Agreement, any term of this Agreement may be amended, supplemented, terminated or waived only with the written consent of the BORG and the Prospective BORG Participant; *provided, however*, that any amendment hereto relating to a matter that would otherwise require an amendment to the Bylaws shall not be permitted without obtaining the same consents thereto and approvals therefor that would be required for such an amendment to the Bylaws.
- 29 Severability.** Any term or provision of this Agreement that is found invalid or unenforceable in any situation in any jurisdiction shall not affect the validity or enforceability of the remaining terms and provisions hereof or the validity or enforceability of the offending term or provision in any other situation or in any other jurisdiction. If a final judgment of a court of competent jurisdiction declares that any term or provision hereof is invalid or unenforceable, the court making such determination shall have the power to limit such term or provision, to delete specific words or phrases, or to replace any invalid or unenforceable term or provision with a term or provision that is valid and enforceable and that comes closest to expressing the intention of the invalid or unenforceable term or provision, and this Agreement shall be enforceable as so modified. In the event such court does not exercise the power granted to it in the prior sentence, such invalid or unenforceable term or provision shall be replaced with a valid and enforceable term or provision that will achieve, to the extent possible, the economic, business and other purposes of such invalid or unenforceable term or provision.
- 30 Waiver; Delays or Omissions.** No delay or omission to exercise any right, power or remedy by the BORG or the Prospective BORG Participant, upon any breach or default by the other, shall impair any such right, power or remedy of such non-breaching or non-defaulting party, nor shall it be construed to be a waiver of any such breach or default, or an acquiescence therein, or of or in any similar breach or default thereafter occurring; nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of the BORG or the Prospective BORG Participant of any breach or default under this Agreement, or any waiver on the part of the BORG or the Prospective BORG Participant of any provisions or conditions of this Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing. All remedies, either under this Agreement or by law or otherwise afforded shall be cumulative and not alternative.
- 31 Parties in Interest.** None of the provisions of this Agreement are intended to provide any rights or remedies to any employee, creditor or other person other than the BORG, the Prospective BORG Participant and their respective permitted successors and assigns (if any).
- 32 Entire Agreement.** This Agreement constitutes the full and entire understanding and agreement between the Parties with respect to the subject matter hereof, and any other written or oral agreement relating to the subject matter hereof existing between the Parties are expressly voided.
- 33 Further Assurances.** Each Prospective BORG Participant shall execute and cause to be delivered to BORG such instruments and other documents, and shall take such other actions, as BORG may reasonably request for the purpose of carrying out or evidencing any of the matters contemplated by this Agreement.
- 34 Rules of Construction.**
- 34.1 *Gender; Etc.*** For purposes of this Agreement, whenever the context requires: the singular number shall include the plural, and vice versa; the masculine gender shall include the feminine and neuter genders; the feminine gender shall include the masculine and neuter genders; and the neuter gender shall include the masculine and feminine genders.
- 34.2 *Ambiguities.*** The Parties hereto agree that any rule of construction to the effect that ambiguities are to be resolved against the drafting party shall not be applied in the construction or interpretation of this Agreement.
- 34.3 *No Limitation.*** As used in this Agreement, the words “include,” “including,” “such as” and variations thereof, shall not be deemed to be terms of limitation, but rather shall be deemed to be followed by the words “without limitation.” The word “or” shall mean the non-exclusive “or”.

- 34.4** *References.* Except as otherwise indicated, all references in this Agreement to “Sections,” “Schedules” and “Exhibits” are intended to refer to Sections of this Agreement and Schedules and Exhibits to this Agreement.
- 34.5** *Hereof.* The terms “hereof,” “herein,” “hereunder,” “hereby” and “herewith” and words of similar import will, unless otherwise stated, be construed to refer to this Agreement as a whole and not to any particular provision of this Agreement.
- 34.6** *Captions.* The captions contained in this Agreement are for convenience of reference only, shall not be deemed to be a part of this Agreement and shall not be referred to in connection with the construction or interpretation of this Agreement.
- 34.7** *Person.* The term “person” refers to any natural born or legal person, entity, governmental body or incorporated or unincorporated association, partnership or joint venture.

